

Women Land Rights in Zambia: Unpacking the Disconnect between Policy and Reality

ABSTRACT

This ethnographic research investigates gender rights for women to access land in Zambia using the feminist legal theory and feminist political ecology to examine the different institutional, legal, and cultural systems that shape women's ownership of and experience with land (including experiences of marginalization and empowerment) in a dual tenure system. Using an ethnographic methodology, the study findings show that while women view land as providing security, identity, and livelihood, the use of patriarchal norms (e.g., *mukazi ni wotandala* - a woman is a visitor) that delegitimize the possibility of permanent land ownership systematically exclude women from holding land. Tenure insecurity is exacerbated by widowhood; all widowed female participants had only conditional rights to use land through their male relatives. Economic barriers, English language requirements, and distance from their locality make access to statutory law impossible for women and reinforce the belief that the "law stops at the tarmac." Though women exert some agency through collective bargaining and negotiation, their empowerment is incomplete and contingent upon their ability to access available resources. The study concludes that the disconnect between policies and reality represents a power differential rather than an implementation gap, and that achieving gender equitable governance of land requires incorporating traditional authorities, decentralizing legal services, and providing resources to implement gender equitable governance of land.

Keywords: *Gender, land access, Feminist Legal Theory, Feminist Political Ecology, customary law, statutory law, widowhood, marginalisation, legal pluralism, patriarchy.*

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LIST OF ACRONYMS

AU — African Union

CEDAW — Convention on the Elimination of All Forms of Discrimination Against Women

FAO — Food and Agriculture Organization of the United Nations

FLT — Feminist Legal Theory

FPE — Feminist Political Ecology

GEA — Gender Equity and Equality Act

IJLPR — International Journal of Law, Policy and the Family

MLNR — Ministry of Lands and Natural Resources

NGO — Non-Governmental Organization

OAPEN — Open Access Publishing in European Networks

SADC — Southern African Development Community

UK — United Kingdom

VGGT — Voluntary Guidelines on the Responsible Governance of Tenure of Land, Fisheries and Forests

ZMW — Zambian Kwacha

CHAPTER ONE

INTRODUCTION

1.1 Introduction

This study investigates the disconnect between Zambia's gender-progressive land legislation and women's lived experiences of tenure insecurity, a phenomenon that feminist scholars argue stems from the interaction between statutory law and entrenched customary power relations (Elmhirst, 2015). Despite strong policy commitments to gender equality at both national and international levels including the Gender Equity and Equality Act (2015), CEDAW, and the Sustainable Development Goals women in rural Zambia continue to face significant barriers to secure land access and control. This persistent gap between policy and practice motivated the selection of this research topic.

Land remains a critical resource in sub-Saharan Africa, shaping not only economic livelihoods but also social identity, power relations, and community participation. In Zambia, where approximately 94% of land falls under customary tenure, access to land is largely mediated by traditional authorities and social norms. Although statutory law provides for equal rights to land ownership, customary systems often privilege men, reinforcing gender inequalities. Women's access to land is therefore frequently indirect, obtained through male relatives such as husbands or fathers, which leaves them vulnerable to dispossession in circumstances such as divorce, widowhood, or land commercialization.

This research is further motivated by the widespread recognition that, despite the existence of multiple legal and policy frameworks aimed at promoting gender equality in land ownership, significant gaps persist between these formal commitments and the lived realities of women in Zambia, particularly in Chibombo District. These gaps highlight the limitations of policy approaches that fail to adequately engage with local social norms, customary governance systems, and power relations shaping land access in practice. By identifying and analyzing these gaps, the study seeks not only to contribute to ongoing debates on gender and land rights but also to inform more effective and context-sensitive policy reforms and implementation strategies that can meaningfully benefit women.

The significance of this study lies in its focus on how these structural and institutional contradictions are experienced in everyday life. Rather than treating gender as a fixed category, the research conceptualizes it as a set of dynamic power relations embedded within legal systems, cultural norms, and local governance structures. This perspective allows for a more nuanced understanding of why legal reforms alone have been insufficient in achieving meaningful gender equality in land tenure.

The study is guided by Feminist Political Ecology (FPE) and Ribot and Peluso's theory of access, which distinguish between formal rights and the actual ability to benefit from resources. These frameworks highlight that access to land is shaped not only by legal entitlements but also by social relations, economic capacity, and institutional practices. As such, women's tenure security cannot be fully understood without examining the broader socio-political context in which land governance operates.

Using qualitative ethnographic methods, this research draws on the lived experiences of women in Chibombo District to explore both the barriers they face and the strategies they employ to navigate complex land systems. The findings demonstrate that while legal reforms are necessary, they are insufficient without addressing deeply rooted customary practices, unequal power relations, and limited access to resources and information.

By highlighting the gap between policy and practice, this study contributes to ongoing debates on gender, land governance, and legal pluralism in Africa. It underscores the need for more context-sensitive and gender-responsive approaches that go beyond formal legal reforms to strengthen women's bargaining power, improve their access to land, and enhance their capacity to use land as a foundation for livelihoods and resilience.

1.2 Background of the Study

Discussions of the intersection between gender and land rights are increasingly at the heart of current exchanges regarding economic development, social equity, and sustainable land use in Zambia principally due to the relative inability of formal commitments to equality to address day-to-day inequities. Zambia's legally pluralistic (statutory law and customary law exist concurrently) land tenure system is primarily governed by Zambia's Constitution, the Land Act of 1995, the Gender Equity and Equality Act of 2015, and the National Land Policy of 2021 which guarantees equal access to land for women, and the SADC Protocol on Gender and Development which

provided an affirmative action policy whereby 50% of state land allocations are reserved for women. However, this statutory framework is asymmetrically applied according to customary systems, with an estimated 94% of land administered under customary systems operating without any gender-accountable mechanisms (House of Chiefs, 2022) resulting in a continued policy-practice gap similar to what has been observed across sub-Saharan Africa (Balas et al., 2022; Oxfam, 2023).

The disconnect is structural rather than incidental, and it operates through three interlocking systems. To begin with, the statutory system does not have effective enforcement mechanisms, although it is formally equal (the Lands Tribunal has 2.1 staff per 100,000 of the rural population) (Ministry of Lands and Natural Resources 2024). Next, the customary system, in which chiefs' courts are used to resolve the majority of disputes in rural areas, has no female adjudicators in the Central Province (House of Chiefs 2022). Female ownership of land is limited; therefore, men often control how land is transferred and women cannot own land on their own. The market, by contrast, restricts women from obtaining credit, as the share of formal credit to women amounts to 11% (Bank of Zambia 2023). The cumulative effects of these three systems of land tenure continue to be evident in allocation outcomes. For example, women received 30.4% of offers of state land in 2017, 30.1% in 2018, and 34.7% in 2019, which is less than the 50% reservation target, which is less than 35% for each year (Ministry of Lands 2023). This gap has a quantifiable opportunity cost associated with it. For instance, the availability of secure land rights has been shown to result in a 17-23% improvement in women's agricultural productivity (Sitko et al. 2022; Ghebru and Holden 2023) and a 0.4 SD increase in the dietary diversity of households (FAO 2023).

This pattern is not unique to Zambia, although its local inflection is distinctive. Globally, 164 UN member states have enacted laws supporting gender equality in land ownership (UN Women, 2023), with normative anchors in SDG Target 5.a, the Voluntary Guidelines on Responsible Governance of Tenure (FAO, 2022), and the AU Framework and Guidelines on Land Policy (2023), yet implementation remains uneven almost everywhere. In sub-Saharan African countries there are both formal agreements that allow for equality between male/female and their continued existence of customary practices that allow for gender-based discrimination exist simultaneously. In fact, this co-existence of formal and informal agreements creates an environment where legal framework(s) prohibiting gender based discrimination is undermined. For example, Zambia has a legal framework that supports greater levels of female ownership/control of property than Rwanda

or Ethiopia, however, because of the country's customary practices, the level of female ownership/control of property in Zambia still lags behind the two countries. Additionally, Zambia has similar levels of joint allocation of land as compared to Ghana and Mozambique, however, the country lags behind the other two in actual land delivery to women. Additionally, in the Chibombo District of Central Province, the area of interest for this research, land ownership in Zambia occurs within Zambia's matrilineal belt of land ownership in Zambia. During this time period, women will inherit through maternal lines of lineage, but the allotment and decision-making surrounding land are being made by maternal uncles and/or elders/male members of their extended family. The result is that women's de jure property rights are subordinate to male authority; thus, women do not have direct access to land because they typically must go through some male intermediary. Because of this male intermediary approach, women do not have autonomy over the property nor have sustainable property rights as a result. Recent feminist legal scholarship on gender relations and land governance in African countries has identified that the field of law in Africa is not neutral; rather the law is a field that is mediated by lines of kinship and by the relatively informal power hierarchies (Aguwau, 2021; Balas et al., 2022).

Recent evidence from a separate study has not only reaffirmed but also clarified that reported access to land cannot be viewed as equal to having access to land. The Chibombo Pilot Land Audit conducted by the European Union/MOFLNR in 2025 supports that notion. The audit was performed on 421,315 people in a peri-urban area located approximately 50 km from Lusaka, Zambia, and found that 58.77% of all land parcels were located on customary land with 41.23% located within a state designated district but only 37.97% of all land parcels were formally registered to the owners. The majority of landowners have been registered in a village or township registry and hold letters of sale but were unable to physically present the documents at the time of the audit. Of the parcels located on state designated land, only 2% were in conformity with approved zoning. There were many disputes on land ownership affecting 13.9% of parcels and the audit also indicated issues related to mapping of land parcels, where 79% of parcels had mapping irregularities.

The formalization of revenue was similarly poor; 80% of land parcel owners stated they did not make a land rate payment. Of those reporting that women had equal access to land, 89% were women, though 62% were male and 38% female. Only 40.4% of all household heads were female as well. The Audit warns that equal access does not mean both genders have equal decision-making

or ownership because there are qualitative differences between the genders. Two findings highlight policy considerations: Customary landholders indicating 84% were willing to convert their land to leasehold demonstrate a community willing to support formalization; and, 4% of land parcels are being rented out with 81.25% of those leases based on oral contracts without legal protection. These findings encapsulate the classic *Zambian irony*; while the statutory commitment is high, and there is great willingness among the community to support the formalization process, the paperwork and authority gap still create barriers for women to assert and receive the full benefits of their claim to land.

There are three connected gaps in the current body of knowledge, including the peri-urban area of Chibombo. The first is an insufficient analysis of how women use the legal statute to challenge the dominant interpretations set by the landowners within their competing legal systems, such as common law vs. customary law in terms of redefining procedures for negotiating with local chiefs, uncles and councils when these statutes have not been applied properly. The second gap is there is a lack of qualitative studies analyzing how women and maternal relatives in peri-urban conversion zones negotiate with traditional authorities and the state. The third gap in knowledge involves the fact that 84% of land has been converted to other uses in Chibombo, yet only 37.97% of the parcels have been given title deeds and only 2% of the total parcels comply with zoning laws (EU/MLNR 2025). This disparity will therefore produce very different patterns of negotiation between women and maternal relatives as well as traditional authorities and state agents when compared to customary areas further away from large urban cities.

The 89% equal access reported in the Audit combined with the predominately male respondents and documentation not being held in women's names shows that if these processes are to continue to create ongoing insecurity for women, then further examinations of their relationship with regard to ownership, be it housing or property, is necessary: who provides assurance of tenure, who negotiates for inheritance, who mediates between women and family member and how do women apply meaning to ownership on a daily basis. Research continues to find low levels of legal literacy among rural women, and the lack of success of awareness-raising initiatives in places such as Chibombo, indicates that resolving the disparity between the law and the practice cannot be accomplished through legal reforms alone (Oxfam, 2023).

Overall, the existing academic literature advocates for an empirical, informal, feminist framework to understand how the policies made by governments or NGOs are receiving local resistance, support or being re-imagined within the power structures and everyday practices of a community. In Zambia, while laws do not overtly prevent women from accessing land; however, in practice, land is still distributed in a way that demonstrates that there is a continued gap between the written policy and how it is lived out with women's life experiences. Gender norms, legal pluralism, low access to legal knowledge and weak rural government institutions all mediate the difference. In the absence of prioritizing the local lived experiences of women from places such as Chibombo, the manner in which interventions have historically been delivered will continue to replicate the same structural inequalities that have resulted in women not having secure land tenure. This is despite the existence of a commitment from government to 50% allocation for women, a modern constitution with strong and progressive language protecting women's rights to own and access land, the endorsement by 164 countries around the world of equal ownership of land by gender (UN Women, 2023) and 84% of customary holders in the Chibombo area expressing a willingness to formalize their tenure (EU/MLNR, 2025).

Therefore, this research developed an ethnographic, constructivist methodology in order to illustrate how women in Chibombo experience exclusion, negotiate their tenure rights and define the meaning of ownership. The alternate local narratives of women will link their stories and experiences of the micro level to the macro level in terms of legal pluralism (i.e., multiple avenues by which women can secure land tenure). This research will identify and relate the impact that relational aspects sustaining gendered tenure insecurity have on women and how they can use that information to transform their experience of land tenure.

1.3 Statement Of the Problem

Zambia has passed several reforms over the past three decades to legalize and policy reform its laws regarding women's rights to access, own and manage land. These include the Lands Act of 1995, the Constitution of Zambia Amendment No. 2 of 2016, and the Gender Equity and Equality Act of 2015, as well as commitments to CEDAW and the AU Framework on Land Policy in Africa. Studies indicate that women who have secure rights and tenure to land have greater economic independence, increased productivity in agriculture, and improved family well-being and participation in decision-making within their communities. However, despite the existence of

progressive legislation, there is still a significant gap in the reality of female ownership and control of land particularly within customary tenure systems where women's access to land is limited due to patriarchy, and women obtain only secondary land rights through family ties which can leave them open to being dispossessed when their husbands die, divorce them, or when there are inheritance disputes. In addition, while there has been sufficient research conducted in Zambia on issues of women's land rights regarding legal and statutory land rights and the implementation of land policy (reform), there has been limited research conducted on women's lived experiences of working in both customary and statutory systems of land tenure in Chibombo District, as well as their perceptions of empowerment, exclusion and justice within the governance of land. The purpose of this study is to fill this gap through the collection of ethnographic data to better understand women's own experiences working within these two different systems of land tenure by using a Feminist Political Ecology (FPE) approach and utilizing practical applications of Feminist Legal Theory.

1.4 Research Objectives

Main Objective:

To explore how women experienced institutional, legal and customary landscapes that explain intersecting power relations in access to and ownership of women's land rights in Zambia.

Specific Objectives:

1. To establish the institutional, legal, and cultural factors that influence women's access to and ownership of land in rural Zambia.
2. To explore how women narrate empowerment and marginalization within statutory and customary land tenure systems in rural Zambia.
3. To describe women's land rights using a feminist approach to explain patriarchal dynamics in rural Zambia.

1.5 Research Questions

- 1 What institutional, legal, and cultural factors shape women's access to and ownership of land in rural Zambia?
- 2 How do women experience and narrate empowerment and marginalization within statutory and customary land tenure systems?

- 3 How do patriarchal dynamics using feminist approach operate to influence women's land rights in rural Zambia?

1.6 Significance of the study

This study makes several important contributions. First, it provides an empirical examination of how gender-responsive land policies operate in practice within a customary tenure-dominated rural context an area often underexplored in national policy analysis. Drawing on the study findings, it demonstrates that while progressive legal frameworks exist, their effectiveness is significantly constrained by entrenched customary norms, limited institutional coordination, and low levels of awareness among women regarding their land rights.

Second, the findings clarify the institutional, legal, and social barriers that continue to hinder gender-equitable land access. In particular, the study reveals that women's land rights are frequently mediated through male authority structures, limiting their decision-making power and tenure security. These insights are critical for informing the implementation of Zambia's 2021 National Land Policy, especially in relation to strengthening enforcement mechanisms, improving community-level sensitization, and enhancing women's participation in land governance processes.

Third, the study goes beyond diagnosis to highlight practical pathways for reform. Based on the findings, it identifies the need for stronger collaboration between state institutions and traditional authorities, increased legal awareness campaigns targeting rural women, and the promotion of inclusive land administration practices. By incorporating lessons from comparative experiences and international best practices, the study offers actionable recommendations for policymakers, traditional leaders, civil society organizations, and land administration agencies aimed at narrowing the gender gap in land access and control.

Finally, the study contributes to broader development objectives by demonstrating the transformative potential of secure land rights for women. The findings confirm that improved tenure security enhances women's economic participation, strengthens household welfare, and supports sustainable rural livelihoods. In this way, the research reinforces national and global development priorities, including Zambia's Vision 2030, the African Union's Agenda 2063, and the Sustainable Development Goals (SDGs), particularly those related to gender equality, poverty reduction, and sustainable development.

1.7 Scope of the study

This study focuses on women's access to land under both customary and statutory tenure systems, examining how cultural practices, legal frameworks, and institutional structures shape women's ability to own, control, and use land. While the research draws empirically on data from Chibombo District, the scope of the study is not confined to producing findings that are only relevant to this location. Instead, the district serves as a case through which broader insights into gendered land relations, legal pluralism, and tenure insecurity are explored.

The scope of the study is therefore best understood in terms of knowledge generation. By analyzing the interaction between policy and practice at the local level, the research contributes to a deeper understanding of the structural and socio-cultural factors that influence women's land rights in similar contexts. The findings are intended to inform wider academic debates, policy discussions, and advocacy efforts aimed at strengthening gender-responsive land governance, both within Zambia and in comparable settings.

1.8 Definitions of Key Concepts

- **Land rights:** For this study, 'land rights' refers to the legal or customary entitlements individuals or households have to use, control, own, lease, transfer or inherit land.
- **Gender equity in land:** In the context of land, 'gender equity' means that women (and other disadvantaged groups) have equal opportunities, capabilities and rights to acquire, use, own, control and transfer land in their own right, and benefit equitably from the land.
- **Vulnerable groups:** These are populations who may face additional structural barriers in accessing land rights by virtue of age (youth), gender (women, female-headed households), disability (persons with disabilities), marital status (widows/divorcees) or other socially marginalized statuses.
- **Customary land tenure:** A system of land rights where land is owned or allocated under the authority of traditional or customary institutions (chiefs, headmen), governed by local norms, customs and unwritten rules rather than formal statutory title.
- **Statutory land tenure:** A land tenure system governed by formal written law, regulation, title deeds or leases administered by state institutions (e.g., Ministry of Lands).

- **Tenure security:** The degree to which land users feel confident that their rights to land will not be arbitrarily removed or diminished, and that their interests (use, control, inheritance) are protected by law or custom, and enforceable.

CHAPTER TWO

LITERATURE REVIEW

2.0 Introduction

This Chapter reviews literature on gender and land rights highlighting a persistent disconnect between policy commitments and lived realities. Global debates emphasize transformative potential of secure tenure for women, yet empirical studies reveal reforms often falter when confronted with entrenched social norms and customary authority structures. The chapter weaves together global, regional and local perspectives and situating empirical findings within feminist theoretical frameworks. The aim is to review empirical and theoretical literature and identify gaps that justify this study.

2.1.1 Global Review: Women's Land Rights and Tenure Security

Globally, women's land rights remain precarious despite decades of reform. The FAO (2023) estimates that only 13% of land worldwide is owned by women, underscoring the scale of gendered exclusion. The issue of land tenure security remains one of the most frequently discussed topics in international forums. The World Bank (2022) emphasizes that secure land tenure is a cornerstone of economic development and poverty reduction. For women, securing land rights increases their ability to gain economic independence and agency, enabling them to improve the lives of their families and communities. Agarwal's (1994) theory of "bargaining within patriarchy" illustrates how intra-household dynamics mediate reforms: even when women are granted legal rights, decision-making power often remains with men. Rwanda's post-genocide reforms, which mandated joint titling and invested in legal literacy campaigns, significantly increased women's ownership of land (Burnet, 2012). In contrast, titling programs in Ethiopia and Kenya often issued certificates in men's names, reinforcing household-level inequalities (Holden et al., 2009). These examples show that documentation alone is insufficient; reforms must be accompanied by institutional safeguards and social change.

Theoretically, Ribot and Peluso's (2003) access framework is particularly useful in interpreting these findings. It disaggregates access into rights-based, relational, and structural pathways, showing that law is only one dimension of access. . Women may hold rights on paper but lack the relational networks or structural resources to exercise them. Global literature also links women's

land rights to broader development outcomes: secure tenure enhances women's economic agency, increases investment in land, and contributes to household welfare and environmental sustainability (Tschakert et al., 2013). Yet intersectional barriers such as ethnicity, age, and poverty compound exclusions, underscoring the need for disaggregated, context-specific research. Intersectionality further complicates the global picture. Gender intersects with age, ethnicity, and socioeconomic status to produce layered exclusions. Women who belong to racial or ethnic minorities, or who live in poverty, face increased barriers to accessing land (Voigtländer & Voth, 2015). This perspective underscores the need for disaggregated, context-specific research that accounts for diverse identities and experiences rather than treating women as a homogenous category. It is clear that globally, gender intersecting with other factors such as age, ethnicity, and socioeconomic status represents an added layer of complexity to land rights. For example, women who belong to racial or ethnic minorities and women who are living in poverty face increased barriers to accessing land (Voigtländer & Voth, 2015). Therefore, there is a need for additional research that will examine the experiences and the diverse identities of women with respect to land rights and provide a fuller understanding of the challenges women face with respect to land.

While global literature highlights the persistence of patriarchal norms, weak enforcement, and intersectional exclusions, most studies remain at the macro level, focusing on legal frameworks or broad socio-economic indicators. There is limited exploration of how these dynamics play out in specific local contexts where customary authority and socio-cultural practices mediate women's access to land. My study addresses this gap by examining Zambia, where high demand for customary land and increasing conversions place pressure on traditional leaders and reshape women's tenure security. By situating the analysis within Zambia's socio-cultural realities, the research contributes localized evidence to global debates, showing how policy commitments are reframed in everyday practice and how customary governance interacts with statutory reforms.

2.1.2 Regional Review: Gender and Land Governance

In the SADC region, the policy practice gap is equally pronounced. The SADC Protocol on Gender and Development sets ambitious targets for equality in land ownership, but implementation remains uneven. Zimbabwe's land reform in the early 2000s shows that women were largely excluded from redistribution, and those who did receive land faced systemic barriers to productive use (Moyo, 2011; Chitonge et al., 2020). This case demonstrates how reforms designed to redress

inequality can reproduce it when gender is not explicitly prioritized and that Customary law plays a decisive role in mediating outcomes. Similarly studies in Malawi and Ghana reveal that matrilineal descent does not guarantee women's control as male kin, husbands, and chiefs often dominate decision-making (Dery, 2007; Chirwa, 2008). This illustrates the theoretical claim of feminist political ecology (Elmhirst, 2015), which emphasizes how gendered power relations are embedded in broader political-economic and ecological processes. Even where women have nominal rights, patriarchal authority structures limit their agency.

Violence and resistance are also part of the regional picture. Simwaka (2022) documents cases in Malawi where women asserting land rights faced violent retaliation from family members. This highlights the governance dimension of the problem: rights cannot be secured without mechanisms to protect women from social sanctions). Therefore, addressing these social issues is imperative if women are to claim their land rights free from any acts of Violence or intimidation that arouse from them asserting their rights. At the same time, regional case studies show women's agency. In Malawi, gender-responsive programs that engaged women in policy formulation and implementation demonstrated promising outcomes (Kadiyala et al., 2014). These examples suggest that participatory approaches, which integrate women's voices into reform processes, are more effective than top-down interventions.

Further, Regional debates on gender and land rights, such as Zimbabwe's exclusionary redistribution (Moyo, 2011) and Malawi's patriarchal mediation of matrilineal systems (Dery, 2007), find direct resonance in Zambia, where customary authority continues to override statutory guarantees. These dynamics crystallize in Chibombo District, where women's nominal rights under matrilineal descent are subordinated to male relatives and chiefs

These findings suggest that gender-sensitive land reform processes need to be designed in a way that will enable women to engage with the land in a meaningful way, thereby fulfilling their gender rights and needs. Research indicates that when women possess secure land tenure, they are more likely to invest in their farms, leading to increased productivity and improved household welfare (FAO, 2017). Consequently, fostering women's land rights can have broader economic impacts, benefiting entire communities.

Despite rich regional scholarship, most studies emphasize socio-economic and political dimensions of reform, while the socio-cultural dynamics of customary authority remain

underexplored. There is limited research on how rising demand for customary land and increasing conversions reshape the authority of traditional leaders and affect women's tenure security at the district level. This study addresses this gap by focusing on Chibombo District, where these pressures are particularly acute.

2.1.3 Local Review Customary Authority, Statutory Law, and Women's Land Rights in Zambia

Zambia's dual legal system statutory and customary creates structural tensions in land governance. While the Constitution affirms equal rights, customary law governs most disputes, limiting statutory impact. Phiri (2021) and Su & Djankov (2023) note that over 90% of land and family disputes are resolved under customary law, where patriarchal norms often prevail. This means that statutory provisions, such as the Intestate Succession Act, are frequently ignored in practice. Sitwala & Tembo (2016) document widespread property-grabbing from widows, highlighting limitations of statutory safeguards.

The local landscape shows us a divergent view, underscoring a complex interplay between formal and informal mechanisms regarding land access in Zambia. Oxfam (2023) reports that many rural women lack awareness of their legal rights, leaving them vulnerable to exploitation. Chisonga (2009) further demonstrates how culturally specific constructs such as of the "family home" in urban Zambia, showing informal economies such as chilimba (rotating savings groups) influence women's access to housing and land. In many ethnic communities, inheritance customs favor male relatives, constraining women's autonomy and tenure security (Chigunta, 2016)

Intersectional vulnerabilities further exacerbate disparities. Widows, female -headed households, and youth face compounded barriers, yet their experiences remain underexplored at the district level (Voigtländer & Voth, 2015). Mweemba (2022) underscores that limited knowledge of legal entitlements keeps many women financially dependent on male relatives, perpetuating inequality. Community based strategies including women's groups and participatory governance initiatives have emerged as critical mechanisms to enhance awareness, advocacy and land access (cullis 2018).

The dual legal framework complicates women's ability to navigate land rights. while statutory laws promote equality, the authority of customary laws often supersedes statutory provisions, generating conflicting interpretations of entitlements (Nhlema, 2018). Current scholarship primary

emphasizes statutory reform, inheritance disputes or social economic barriers leaving a gap in understanding how increasing demand for customary land and land conversions reshape traditional authority and affect women's tenure security at the district level.

This study addresses this gap by focusing on Chibombo District, providing localized evidence on how customary governance interacts with statutory reforms, and illustrating the strategies women employ to negotiate access in practice. By situating the analysis within the districts socio-cultural realities, the research contributes both empirical and theoretical insights to national debates on gender – responsive land governance , highlighting the necessity of integrating legal reform , education and community engagement to achieve meaningful equality in land ownership.

2.2 Gendered property rights and customary practice

A pioneering ethnographic study by Agarwal (2021) in parts of India examined household- and community-level processes shaping women's bargaining power over land. Using in-depth interviews and participant observation across villages, Agarwal showed that formal legal reforms expanding women's property rights had limited impact where customary practices privileged male authority and where women's economic independence was constrained. The study's feminist theoretical stance emphasized bargaining within patriarchy and illustrated how social norms and intra-household relations mediate law's effect. Agarwal's work remains foundational in showing that formal entitlements do not automatically produce equitable access.

A major strength of the study lies in its application of feminist political economy perspectives, particularly the concept of “bargaining within patriarchy,” which highlights how women's access to land is mediated by intra-household power relations and broader patriarchal structures. By demonstrating that legal reforms expanding women's property rights often fail to translate into actual control over land, the study effectively reveals the gap between formal legal entitlements and lived realities.

Despite these contributions, several limitations can be identified, while Agarwal acknowledges bargaining processes, the analysis largely focuses on structural barriers rather than exploring how women may strategically navigate or challenge these systems. Secondly, the reliance on ethnographic methods within selected villages limits the applicability of the findings to other regions or contexts. Rural communities in India are highly diverse in terms of caste, class, and

regional land tenure systems, yet the study does not extensively differentiate how these factors might produce varied outcomes for women's land rights.

2.3; Matrilineal systems and contested reforms

In Ghana, research by Dery (2021) and subsequent ethnographic studies have shown that matrilineal systems do not guarantee women's secure land rights. An ethnographic study by Dery (2021) in northern Ghana used family histories, interviews, and observation to show that women's land access depended on male kin and residence patterns despite matrilineal descent. Feminist analysis exposed how legal pluralism (custom and state law) creates spaces of contestation wherein women are often disadvantaged. The study highlights that local norms and power relations shape the translation of policy into practice.

Though, the study by Dery Isaac (2007) provides an important contribution to understanding the complexities of women's land rights in Ghana, particularly within matrilineal societies, the ethnographic approach, while valuable for providing in-depth contextual understanding, it is limited in scope and may not fully capture the diversity of land tenure arrangements across different regions of Ghana. As a result, the findings may not be easily generalized to other matrilineal or patrilineal communities. The study emphasizes the role of male kinship control in shaping women's access to land, giving relatively limited attention to the ways women may exercise agency to negotiate or challenge these constraints within the kinship system.

2.3.1 Rights, law, and customary adjudication

Tanzania's land code reforms were examined ethnographically by Lund and Lemos (2015). Using long-term fieldwork including observation of village land committees, interviews with women claimants, and document analysis, they tracked the interplay between statutory law, village-level institutions, and customary authorities. The authors showed that village institutions often implement formal rules selectively; women's claims are frequently subordinated to collective claims or male preferences. The work used a feminist institutionalist approach to analyze how institutions reproduce gender hierarchies despite legal reforms.

2.3.2 Women's land certification and lived outcomes

A mixed-methods, largely qualitative study by Holden et al. (2021) examined Ethiopia's land certification program. Ethnographic interviews and community-level observation showed that

although certification raised tenure security for households, women's separate and individual rights remained tenuous because certificates were often issued in men's names or in joint names while decision-making remained male-dominated. The study used feminist theory to interrogate household-level power and showed that formal documentation can entrench existing gendered patterns if social norms are unchanged.

2.3.3 Land titling, inheritance, and court disputes

In Uganda, local ethnographic research by Rule (2021) analyzed women's experiences with land disputes and legal recourse. Through interviews with women litigants, observation of court proceedings, and analysis of customary practices, the study showed that access to formal legal avenues requires resources, literacy, and social support that many women lack. The feminist lens underscored how the legal system, though formally gender-neutral, often privileges those with social capital and aligns with patriarchal expectations.

2.3.4 Commercialization, migration, and women's land access

A qualitative study by Nhantumbo and Salomão (2021) in Mozambique focused on land commercialization and rural women's claims. Ethnographic interviews and community mapping exercises revealed that large-scale land deals and migration dynamics compound women's vulnerability: statutory processes often sideline customary rights, and women's lack of formal recognition reduces bargaining power. Feminist political ecology informed the analysis by linking political economy to gendered access to land and resources.

2.3.5 Customary law, statutory protections, and rural women

South Africa offers complex interplay: constitutional gender equality and statutory reforms coexist with localized customary practices. An ethnographic study by Walker (2021) used interviews with rural women, observation of traditional court processes, and document analysis to show that despite progressive law, customary authorities and community norms often govern access and inheritance. Feminist legal scholars documented the gap between constitutional promises and everyday governance.

2.3.6 Custom, law, and women's land rights

Directly relevant to Chibombo's national context, ethnographic research in Zambia by Sitwala and Tembo (2016) examined women's land access in rural districts. Using interviews and focus groups,

they found that customary leaders often mediate land disputes and that formal policies promoting women's rights are poorly implemented at local levels. The study emphasized resource constraints, male dominance in customary councils, and limited awareness as factors perpetuating the policy–reality gap.

Additionally, Chisonga (2009) offers ethnographic evidence about how gendered livelihoods mediate access to housing in urban Zambia that is directly relevant to analysis of gender and land rights in Chibombo District: Using participant observation and in-depth interviews with six small-scale traders in Matero Township, Lusaka, he shows that historical and policy shifts, colonial-era rental regimes, 1990s economic liberalization, and the 1996 housing transfers, reconfigured but did not eliminate gendered patterns of property access because formal legal changes coexist with entrenched customary practices and unequal economic opportunities (Chisonga, 2009).

His findings that women are concentrated in low-margin, home-based food retail while men operate higher-turnover, skilled enterprises underscore how market-derived income determines households' ability to secure, control, or expand housing, an insight that illuminates how land-rights reforms on paper may fail to translate into equitable access where women lack equivalent livelihood returns (Chisonga, 2009).

The study's discussion of the "family home" as a culturally specific, de facto form of tenure often controlled through sibling arrangements and subject to customary norms, speaks directly to the disconnect between statutory property rights and lived realities in rural and peri-urban contexts, where women's claims remain vulnerable despite formal legal provisions (Chisonga, 2009). Chisonga also highlights the critical role of family labour, social networks, and rotating savings schemes (*chilimba*) as informal mechanisms that support housing access, suggesting that policy interventions in land rights must account for these social economies rather than rely solely on formal titling or market mechanisms (Chisonga, 2009).

For research on Chibombo District, his work implies that unpacking the policy–reality gap requires attention to gendered income differentials, customary tenure practices, household power dynamics, and local informal safety nets that together shape whether legal reforms actually improve women's land and housing security (Chisonga, 2009).

2.3.7; Women's rights to land amid local negotiation

An ethnographic study by Chirwa (2020) in Malawi used household interviews and participant observation to trace women's land acquisition strategies (inheritance, marriage arrangements, and land purchases). Chirwa found that women often depend on negotiated access mediated by husbands, in-laws, and chiefs. Legal reforms offering women rights had limited reach due to social norms and limited enforcement.

By employing household interviews and participant observation, the study offers a nuanced understanding of the informal and negotiated processes through which women acquire land, including inheritance, marriage arrangements, and land purchases. The ethnographic approach is a strength because it captures the socio-cultural dynamics that often remain invisible in quantitative land studies. In particular, the finding that women's land access is frequently mediated through husbands, in-laws, and traditional authorities highlights the persistence of patriarchal structures in land governance.

However, the study has several limitations. First, while the ethnographic methodology provides rich contextual data, it is typically limited in geographical scope and sample size, which may restrict the generalizability of the findings beyond the specific communities studied. Second, although the study acknowledges the role of legal reforms in improving women's land rights, it does not sufficiently examine the institutional mechanisms that could strengthen the enforcement of these laws. As a result, the analysis tends to emphasize cultural barriers while giving less attention to governance and policy implementation challenges. Furthermore, the study focuses primarily on women's dependence on negotiated access but does not fully explore women's agency in challenging or transforming these power relations.

2.3.8 Comparative global studies emphasizing feminist perspectives

Complementing African cases, comparative ethnographic work (Meinzen-Dick et al., 2011) synthesizes findings from multiple countries showing consistent patterns: legal reforms alone rarely shift gendered access unless accompanied by social change, institutional reform at local levels, and targeted empowerment. These studies typically draw on feminist theory to link macro-level policy to micro-level household dynamics.

2.3.9 Cross-study synthesis: Common mechanisms producing the policy–reality gap

Across global, regional, and local contexts, several mechanisms recur: legal pluralism, institutional weakness, intra-household bargaining, elite capture, and market pressures. These mechanisms explain why statutory reforms often remain symbolic. The literature also highlights methodological lessons: ethnographic approaches, life histories, and participatory mapping are necessary to capture the micro-processes through which rights are contested. Feminist legal theory, feminist political ecology, and intersectionality provide the theoretical tools to analyze these processes. Women's claims are subject to customary authorities whose norms often override statutory provisions (Lund & Lemos, 2015; Walker, 2005).

Institutional capture and elite control: Local institutions (village land committees, chiefs) may reinforce male control, favour elites, or commodify land, blocking women's access (Njuki & Sanginga, 2013; Nhantumbo & Salomão, 2010).

Documentation vs. practice: Formal titles and certificates can give households security but often fail to produce women's independent rights without corresponding changes in household power (Holden et al., 2021).

Resource and capacity constraints: Women's limited access to resources (money, legal literacy, social networks) hampers their ability to use formal legal avenues (Rule, 2013).

Norms, bargaining, and intra-household dynamics: Patriarchal norms shape bargaining outcomes, inheritance practices, and marital residence, which mediate the effect of laws (Agarwal, 2021; Chirwa, 2008).

The literature identifying mechanisms that produce the policy–reality gap in women's land rights provides an important analytical framework for understanding why gender-equitable land policies often fail to translate into practice. Scholars such as Christian Lund and Jesse Ribot Lemos (2015), as well as Cherryl Walker (2021), highlight the role of legal pluralism in shaping land governance outcomes. Their work shows that where statutory and customary systems coexist, women's claims are frequently mediated by traditional authorities whose interpretations of customary norms may override statutory gender-equality provisions. While this perspective is valuable in revealing the complexity of land governance systems, it can sometimes portray customary institutions as

uniformly patriarchal, thereby overlooking contexts where customary practices may also provide avenues for negotiation or protection of women's rights.

Similarly, the literature on institutional capture, particularly by Jemimah Njuki and Anastasia Sanginga (2013), as well as Isabel Nhantumbo and Alda Salomão (2021), offers critical insights into how local land governance institutions may reproduce existing power hierarchies. Their analyses demonstrate that institutions such as village land committees and traditional leadership structures may favour local elites, reinforce male dominance, or facilitate land commodification in ways that marginalize women. However, these studies sometimes focus primarily on institutional constraints without fully examining the internal dynamics of these institutions or the potential for reform and accountability mechanisms that could promote gender-sensitive governance.

A limitation of this body of research, is that it may underestimate the long-term transformative potential of land titling initiatives when combined with complementary interventions such as legal literacy, institutional reform, and gender-sensitive land administration systems.

Greater attention could be given to how women exercise agency within these systems, how reforms to customary and statutory institutions might be operationalized, and how broader socio-economic transformations influence women's access to land. These gaps suggest the need for further context-specific research, particularly in countries such as Zambia, where statutory and customary land tenure systems coexist and shape the implementation of gender-responsive land policies.

2.4 Theoretical Framework

This section outlines the theoretical framework used to analyze gender and land Feminist theory and Grounded theory Each subsection explains the theory, its relevance to land-rights research, and implications for qualitative, ethnographic methods.

Figure 1
Model of Feminist Theory

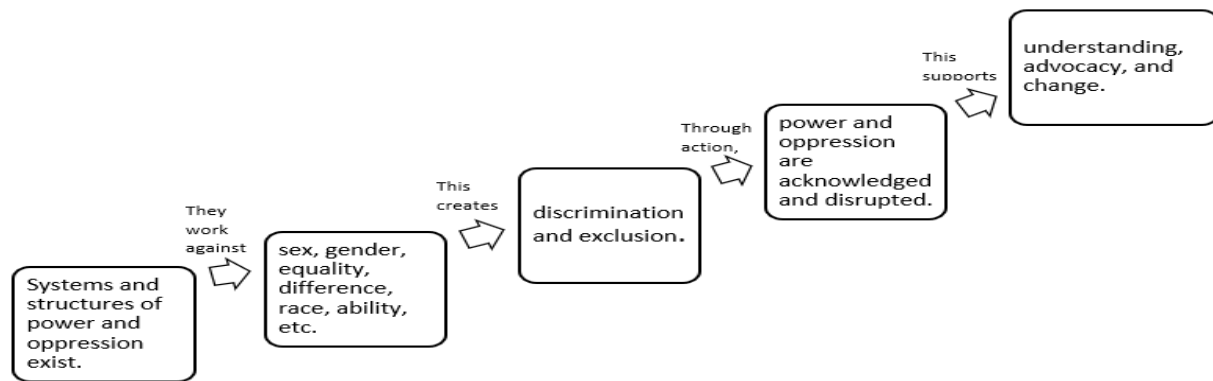


Figure 1 illustrates the key dimensions and interactions that underpin this study. The framework highlights how legal structures, socio-environmental factors, and intersecting social identities collectively influence women’s land rights. This conceptual lens serves as a guide for the subsequent theoretical discussion, situating feminist legal theory, Feminist Political Ecology, and intersectionality within a coherent analytical framework that links law, environment, and lived experiences.

Feminist theory emerged in its modern academic form during the second-wave feminist movement of the late 1960s and 1970s in North America and Europe, though its intellectual roots trace back to earlier writings by authors such as Mary Wollstonecraft and Simone de Beauvoir. It originated as a response to the systematic exclusion of women’s experiences from law, economics, political science, and development studies, which had long treated male perspectives as universal and rendered gendered inequalities invisible. The core purpose was to expose how knowledge, institutions, and policy are shaped by patriarchal power, and to develop analytical tools that center women’s lived realities. In this study on gender and land rights in Chibombo District, feminist theory provides the conceptual foundation for questioning why Zambia’s statutory guarantees of gender equality coexist with persistent female insecurity in land access. It directs attention away from purely technical explanations such as lack of awareness of the law toward the social relations and institutional arrangements that reproduce male control over land, even when the law appears neutral.

The main strength of feminist theory for this research is its insistence on making gender a primary category of analysis rather than an add-on variable. It forces the study to ask whose interests the

law serves, who is recognized as a legitimate claimant, and how household and community norms silence women's voices in land allocation. It also legitimizes qualitative, experience-based evidence, particularly women's narratives of dispossession, bargaining, or exclusion, as valid data, which is essential in Chibombo where written records may be absent or biased (Bainham, 2020). A key weakness, however, is that early feminist theory often treated women as a homogenous category, risking overgeneralization and missing how class, age, marital status, or lineage create very different outcomes among women themselves (Collins, 2019). It can also be criticized for being more diagnostic than prescriptive, effective at exposing inequality but less specific on how to reform deeply embedded customary institutions without provoking backlash.

This study therefore uses two specific strands, Feminist Legal Theory (FLT) and Feminist Political Ecology (FPE), because together they address the policy–reality disconnect from both institutional and material angles. Feminist Legal Theory is necessary because the problem is fundamentally about law in practice: Zambia has gender-progressive statutes, yet women in Chibombo still report insecurity. FLT explains that this is not a failure of implementation alone but a product of law's design: statutes assume male household heads, rely on documentary proof women rarely hold, and defer to customary authorities without altering their gendered norms (Bainham, 2020). Using FLT allows a systematic examination of how legal texts, dispute procedures, and administrative practices embed patriarchal assumptions, rather than treating law as neutral.

Feminist Political Ecology strengthens the study by linking those legal patterns to material conditions and power over resources. Land in Chibombo is not just a legal right; it is livelihood, food security, and collateral, and its value is rising due to commercialization and peri-urban expansion. FPE shows how market pressures, ecological stress, and local governance interact with gender norms to reshape who actually controls plots. It explains, for example, why a widow might lose land when her late husband's kin sell it to an investor, or why younger married women can access land only through husbands despite joint spousal provisions in law (Rocheleau, 2018).

Used together, FLT and FPE correct each other's blind spots and make the research more robust: FLT captures the institutional and rules side of the disconnect, while FPE captures the economic and ecological forces that make those rules matter. This combination moves the analysis beyond describing that women are disadvantaged to explaining how specific laws, norms, markets, and environmental pressures converge in Chibombo, and which women are most affected. That is why

these frameworks are not just theoretical decoration; they shape the research questions, sampling, and interpretation of findings.

2.4.1 Feminist legal theory

Feminist legal theory provides a critical lens for examining how law both reflects and reproduces gendered power relations, challenging the assumption that legal frameworks are neutral or objective (Bainham, 2012). Rather than treating law as an impartial set of rules, this perspective shows that legal categories, procedures, and norms are often embedded with patriarchal values that privilege male authority within households, lineages, and public institutions. When applied to land rights, feminist legal scholarship interrogates how property law, inheritance statutes, and land administration systems incorporate gendered assumptions about who is recognized as a legitimate landholder — for example, the default positioning of men as household heads and primary decision-makers, while women are constructed as dependents whose access to land is mediated through marriage or male kin.

A central insight from this theory is that formal legal equality does not automatically translate into substantive equality. Gender-blind provisions in statutes may appear fair on paper, yet they reproduce unequal outcomes where underlying social power relations remain unchanged. In contexts of legal pluralism where state law operates alongside customary and religious norms enforcement becomes even more uneven. Customary authorities, such as chiefs and family elders, may interpret or bypass statutory protections for women's land rights, resulting in a disconnect between what the law provides and what women experience in practice.

In the case of Chibombo District, adopting a feminist legal approach means analyzing Zambia's statutory land laws and national gender policies in parallel with the customary rules applied by local chiefs and family networks. It also calls for qualitative inquiry that centers the voices of women land users, traditional leaders, and land allocation committees to understand where statutory provisions are implemented, contested, or simply ignored in daily practice.

2.4.2 Feminist Political Ecology (FPE)

Feminist Political Ecology (FPE) integrates political economy with gender analysis to examine how access to and control over natural resources, including land, are shaped by intersecting power relations, market processes, and ecological dynamics. Rather than treating resource access as

purely technical or legal, FPE emphasizes that it is relational and produced through social institutions, material practices, and broader economic transformations. Recent literature underscores that gender does not operate in isolation but intersects with class, age, and ethnicity to determine who can claim, use, and benefit from land (Lawrence et al., 2025). Contemporary FPE scholarship highlights how political-economic shifts such as agricultural commercialization, land markets, and state decentralization reconfigure local access regimes, often to the disadvantage of women who lack capital, political connections, or recognized authority (MacGregor & Ray, 2024). Environmental change and resource governance are also gendered: conservation measures, soil degradation, or climate pressures affect men and women differently because of their distinct roles in production and their unequal control over land-based decisions (OAPEN, 2023). Applied to Chibombo, an FPE approach investigates how commercial pressures (e.g., land sales and contract farming), ecological changes (e.g., declining soil fertility and climate variability), and customary authority structures intersect to reproduce gendered exclusions, while also revealing spaces of agency where women negotiate access through collective action or hybrid customary statutory strategies. Methodologically, this requires participant observation across agricultural seasons, mapping of women's access to plots, and in-depth interviews about livelihood strategies and decision-making.

2.4.3 Intersectionality

Intersectionality (Crenshaw, 1989; Collins, 2000) argues that social categories such as gender, class, ethnicity, and age do not operate independently but interact to produce distinct experiences of privilege and oppression. In land-rights research, an intersectional lens moves beyond binary comparisons of men versus women toward a more nuanced understanding of how subgroups of women encounter different barriers and opportunities. Power operates across multiple dimensions structural (laws, policies), symbolic (norms about “proper” wives or daughters), and interpersonal (household bargaining) — and these dimensions combine to shape resource access. As a result, policy impacts are rarely uniform: legal reforms may benefit urban, educated, or well-connected women while leaving rural, poor, divorced, or widowed women excluded. For a study in Chibombo District, an intersectional approach means deliberately sampling across lines of marital status, age, lineage affiliation, and socio-economic position, and documenting how these axes mediate women's land claims and their interactions with both customary institutions and state mechanisms.

2.4.3.1 Integrating Empirical Findings and Theory: Explaining the Policy–Reality Disconnect

Bringing the empirical studies together with the three theoretical frameworks helps clarify why formal gender-equality laws often fail to produce equitable land access in practice. Feminist legal theory explains the gap between law as text and law in practice: statutes may be gender-neutral on paper yet remain embedded in social relations that reproduce male privilege, leading to uneven enforcement (Walker, 2005; Lund & Lemos, 2015). Feminist Political Ecology situates these dynamics within wider political-economic transformations, showing how market forces, commercialization, and local elite capture can override statutory protections — for instance when chiefs or powerful kin allocate land to investors or male relatives (Nhantumbo & Salomão, 2010). Intersectionality accounts for heterogeneity among women, explaining why some (e.g., elite or well-connected women) can secure formal titles while others remain marginalized (Holden et al., 2021; Agarwal, 2021).

Applied to Chibombo, these insights generate several testable expectations. Customary authorities are likely to play a decisive mediating role in policy implementation, often reproducing patriarchal norms despite formal gender provisions. Documentation programs such as titling may enhance overall household tenure security but fail to secure women’s independent rights unless intra-household bargaining power is directly addressed. Finally, women’s experiences will vary significantly by marital status, lineage affiliation, and socio-economic position, meaning that interventions must be targeted rather than universal.

2.4.3.2 Methodological Recommendations for Chibombo Research

Drawing on the empirical and theoretical literature, an ethnographic, feminist-informed field study in Chibombo should be multi-sited, covering households, village courts, land allocation committees, and district land offices. Purposive sampling is essential to capture diversity among women (including widows, young brides, and female-headed households) as well as men, chiefs, and land officials. Methods should combine participant observation, in-depth interviews, life histories, and focus group discussions with participatory mapping to document patterns of access, claims, and disputes. Alongside this, a legal and institutional analysis of statutory frameworks, land deeds, and administrative records should be paired with direct observation of dispute resolution and land allocation processes to see how rules are applied in practice.

2.4.3.3 Policy Implications Distilled from Literature

The literature points to several policy-relevant strategies. First, strengthening implementation requires translating statutory rights into practice through training of customary leaders and local administrators, and through mechanisms that guarantee women's meaningful participation in land committees (Doss et al., 2014). Second, women's bargaining power can be enhanced through programs that improve their economic resources, legal literacy, and access to legal aid, enabling them to navigate formal channels more effectively (Rule, 2013). Third, interventions must directly address institutional and normative barriers by engaging customary leaders and communities to shift norms around inheritance, marital residence, and women's agency (Agarwal, 2021). Finally, given the heterogeneity revealed by intersectional analysis, programming should be targeted to reach the most vulnerable groups widows, migrants, and women from marginalized ethnic or lineage groups rather than assuming that one policy will benefit all women equally.

2.5 Gaps in Literature

Despite considerable contributions to the discourse on gender and land rights, several critical gaps in the literature persist. Identifying and understanding these gaps is essential for advancing both academic research and practical interventions aimed at promoting women's rights in land ownership. Despite extensive scholarship, gaps remain. There is limited district-level ethnography in Zambia that observes customary adjudication in practice. Intersectional analyses are underdeveloped, with most studies treating women as a homogeneous category. Women's agency collective strategies, negotiated tenure arrangements, and informal mechanisms has received insufficient attention. This study addresses these gaps by focusing on Chibombo District, employing feminist ethnography to document how statutory reforms are interpreted, contested, or ignored, and identifying locally feasible strategies for reform.

Zambia's dual legal system and the related outcomes for women have been dealt with within existing literature. However, there has been limited research into how women conceptualise their exclusion from land. Charmaz (2014) provides a methodological framework that moves away from measuring women's knowledge of the Lands Act, and instead relies on the constructivist grounded theory to analyse how women experience denial and subsequently resist or normalise their exclusion, as a way of developing an understanding of the issue. This approach will help fill the gap in current district-level research, which fails to provide the intersectional analyses of women

as a homogeneous category. By developing a new theory based on Chibombo women's lived experiences of customary adjudication and inheritance disputes, as well as the barriers to obtaining evidence of ownership and other forms of documented entitlement, the study will provide insight into how these processes exhibit the mechanisms that produce the policy-practice divide.

2.4.2 Examination of Customs and Law Interplay

Many researchers associate a "customary law" with a specific set of customs that may be different from, or not necessarily aligned with, modern "statutory laws." However, to date, little research has been conducted on the interaction between the two systems as they pertain to women's property rights. Numerous writers have written about the dual legal system in certain places such as Zambia and the related gender inequities, but very few researchers have looked beyond the surface of how the two systems work together to affect woman's property rights (Chigunta, 2016).

Many researchers wrote about the existence of both legal systems but were not able to further analyze how they work together and the resulting complexities of the systems from a woman's perspective. Most often, women are placed in the background of their experiences.

A woman may have statutory rights to own land legally, but the application of customary practices may establish the ability of the woman to negotiate the above-mentioned "legal" rights in accordance with the authority of a male family member or the lands' owner, which impacts the woman's overall experience regarding the right to land. Therefore, the combination of both systems creates confusion about whether or not a woman can exercise her legal rights. Thus, the impact on women regarding both legal and customary rights must be very clearly understood to create legal recommendations for bringing together both statutory and customary laws (Merten & Haller, 2023).

The relationship between customary law and statutory law has not been well researched from a women's point of view. Chigunta (2016) suggests that land transfer is generally governed by custom rather than by law, but Argawal(2021) states that legal pluralism does not follow the model of two systems coexisting in parallel but of two systems of authority competing with one another for supremacy. Customary authorities serve as "gatekeepers" who reinterpret legal joint-ownership of land to fit within their lineages, resulting in various interpretations of entitlements. Existing scholarship recognizes the existence of both systems but rarely examines how real-life women (i.e., widows, youth, or divorced woman) in specific locations negotiate between the two

systems. Aguwau's framework therefore guides the literature review towards studies of negotiation and not just exclusion; specifically, how women are able to use chilimba (i.e., deposit) groups, sibling arrangements, or maternal kin to obtain de facto use of property, even where there are de jure difficulties. Chibombo is an example of this increasing demand for customary land resulting in increased negotiation.

2.4.3 Underexplored Intersectionality

The vast majority of the literature fails to thoroughly address the intersectionality between gender, age, disability and all other social identifiers that create obstacles for women to secure land rights. There has been plenty of research related to gender-based discrimination regarding land ownership, but there is a lack of evidence on the complexities surrounding the difference between women's social positions. Essentially, we do not have a good understanding of how different factors combine to create unique circumstances for specific groups of women, such as younger women, disabled women, or female heads of household (Crenshaw 1989).

It is important to understand intersectionality because we want informed and inclusive policies regarding the various ways women experience their land rights. For example, a widow experiences different barriers than a married woman simply because of her status, but also because of her age, financial resources and support systems within her community. Policymakers can use the understanding of the many ways women experience their land rights, and create unique interventions for women similar to these, which will allow them to better secure land rights within their circumstances.

In addition, the detailed examination of intersectionality offers an additional avenue through which awareness raising will aid in advocating for the distinct challenges experienced by marginalized populations, within an umbrella definition of "women". The development and utilization of an intersectional perspective will not only be beneficial to feminist discussions, but also create a foundation through which increased social justice efforts can be focused on providing equitable access to land.

To provide women with safe and equitable land rights, gaps in the above explanation must be addressed by utilizing a holistic approach to ensure all women regardless of social identity have the opportunity to protect their land ownership rights.

As seen through the above gaps in the literature, these gaps show clearly the need for further intensive research that expands upon our knowledge base about the intersectional relationship between gender and land rights as well as practical measures aimed at correcting structural inequalities. By creating bridges between the existing gaps in the literature, a more complete view of the landscape of women's land rights will be created which will then be used to assist with achieving true equity in land ownership.

2.6 Conclusion

The literature demonstrates that women's land rights are constrained by a persistent policy practice gap across global, regional, and local contexts. While statutory reforms and international commitments articulate gender equality, customary authority structures, patriarchal norms, and weak enforcement mechanisms undermine practical outcomes. Theoretical frameworks feminist legal theory, feminist political ecology, intersectionality, and access theory provide tools to analyze these dynamics. By situating Chibombo District within this broader landscape, this study contributes localized empirical evidence to global debates, while addressing gaps in the literature on customs–law interplay and intersectionality

CHAPTER THREE

METHODOLOGY

3.0 Introduction

This chapter details the methodological approach used for the study, detailing the study area, research design, target population, data collection methods, sampling methods, data collection and Analysis methods applied toward meeting the aims of the research objectives. It also outlines ethical measures related to conducting this study are included so as to clearly state they remain committed to upholding the highest level of research integrity and protection of participants. The methodology will allow for an in-depth understanding adopting a qualitative feminist approach to examine the current conditions of Land Ownership, networking of Gender-responsive Land Administration Systems and how Zambia's dual legal system affects the Land Rights of women. (Cousins, 2010; Manjoo (2011)

3.1 Research Philosophy and Design

The study was grounded in the interpretivist research philosophy, which recognizes that social reality is constructed through the meanings and experiences of individuals. This philosophy is particularly well-suited for analyzing gendered land relations, as land tenure systems function not only as legal and economic structures but also as deeply embedded cultural and social systems. Following this approach, a qualitative research design was adopted with a strong emphasis on ethnography.

Ethnographic methods were central to the study, enabling a rich and nuanced understanding of the cultural norms, social interactions, and daily practices that shape women's experiences with land. The research process involved prolonged engagement with participants, immersion in their social contexts, and the use of in-depth, semi-structured interviews to capture personal narratives. Non-participant observation was also employed to observe community interactions, decision-making processes, and the influence of customary practices on land access. Throughout the research, data collection and analysis were iterative and reflexive, allowing emerging themes and meanings to guide further inquiry. This ethnographic approach facilitated the uncovering of lived realities and subjective meanings that would remain hidden using more positivist or quantitative methods

3.2 Study Area and Target Population

The research was conducted in Chibombo District, located in Zambia's Central Province. Chibombo is predominantly rural and is characterized by a dual land tenure system, comprising both statutory and customary arrangements. Customary land tenure is administered by traditional authorities, whereas statutory tenure is managed through formal government structures. This dual system creates a dynamic context where conflicts and negotiations over land rights frequently arise, making Chibombo an appropriate setting for examining the intersection between legal frameworks, cultural norms, and gendered land access.

The study sample consisted of women residing in rural areas of Chibombo who have experience in accessing, owning, or attempting to gain access to land under either or both tenure systems. Participants were purposively selected to ensure the inclusion of widowed, single, and divorced women, as these groups are often most vulnerable to land insecurity. In addition, key informants, including traditional leaders and local administrators involved in the land tenure process, were interviewed to provide institutional and policy perspectives. This sampling approach allowed for a comprehensive, ethnographic exploration of both individual experiences and broader governance structures influencing women's land rights.

3.3 Sampling Procedure and Sample Size

This study was guided by Feminist Legal Theory and Feminist Political Ecology. These frameworks enabled a critical exploration of how legal systems, cultural norms, and power relations intersect to shape women's access to land and tenure security.

The researcher employed purposive sampling to identify women with direct experience in accessing, owning, or attempting to claim land under Zambia's dual tenure system. Specifically, women were chosen based on their marital status (widowed, single, or divorced) because these groups often face heightened land insecurity. Key informants, such as traditional leaders and local land administrators, were also selected purposefully to provide insights into institutional dynamics. This approach ensured that participants had firsthand knowledge of the complexities of land access, enabling a deep exploration of gendered power dynamics in both customary and statutory land systems." The sample consisted of Eleven participants: nine women and two key informants.

Two widows, two divorced woman, three single women , one representative from a women's/chilimba group, and one NGO/legal aid practitioner working on women's land rights..

The women participants were purposively chosen to reflect diverse marital statuses including married, divorced, and widowed given that these factors influence women's vulnerability to land insecurity

The sample size was established based on the principle of data saturation, where data collection continued until no new themes or insights emerged. As noted by Guest et al. (2006), data saturation can be achieved in qualitative studies with relatively small, focused, and homogeneous samples, particularly when the research topic is specific and situational. This approach ensured that the study generated rich, relevant, and in-depth data for ethnographic analysis.

3.4 Theoretical Framework

This study is guided by Feminist Legal Theory and Feminist Political Ecology, which inform the research design, data collection, and analysis as follows The research design, data collection, and analysis were explicitly shaped by Feminist Legal Theory and Feminist Political Ecology. Feminist Legal Theory informed the development of interview questions aimed at uncovering how formal and informal legal systems impact women's land rights, and guided observations of legal processes and interactions between statutory and customary authorities. Questions explored participants' understanding of statutory rights, experiences with legal institutions, and perceptions of justice and exclusion.

Feminist Political Ecology directed attention to the ways gender, power relations, and resource access are constructed and contested in everyday life. This perspective influenced the selection of participants (prioritizing those most affected by land insecurity and power asymmetries), as well as the focus of field observations—specifically, how social norms, family structures, and environmental factors intersect to shape women's strategies for accessing and controlling land. During analysis, both frameworks were used to interpret women's narratives about navigating patriarchal structures, negotiating with authorities, and the meaning of land in their daily lives.

3.5 Data Collection Instruments and Measures

The primary data was obtained using semi-structured interviews and ethnographic observations. In semi-structured interviews, the respondents were allowed to use their own words to narrate their

experiences while ensuring that important thematic areas were captured in a uniform manner across all interviews. According to Kvale and Brinkmann (2015), semi-structured interviews are preferred in qualitative studies about gender issues due to their flexibility in conducting analysis. The interview guide included questions covering the process of acquiring land, the experiences within both the customary and statutory systems, attitudes towards land ownership, challenges in owning land, and other similar themes. The questions were left open-ended to provide the respondent ample time to narrate his or her experience. The interview was done in the language of the community whenever possible before translating it into English for further analysis. Moreover, observations of non-participant nature were done in the community setting where the dynamics of land discussion and decision-making process were recorded.

3.5.1 Ethnographic Engagement and Field Experience

Although the researcher was not permanently resident in Chibombo District, the study involved prolonged engagement through regular and repeated visits to the study area over the course of the research. Being based in Kabwe, which is in close proximity to Chibombo, enabled the researcher to access the community frequently, typically at two-week intervals. These repeated visits provided opportunities to build rapport with participants, gain familiarity with the local context, and observe community dynamics related to land access, inheritance practices, and gender relations.

Beyond formal interviews, the researcher engaged in informal interactions with community members and observed discussions and practices relating to land ownership and tenure security. These engagements enhanced contextual understanding of participants' experiences and supported the interpretation of interview data. The ethnographic orientation of the study therefore rested on sustained field engagement, contextual observation, and attention to participants' lived realities within their social environment.

3.6 Validity, Reliability, and Trustworthiness

In keeping with ethnographic methodology, the researcher engaged in prolonged immersion within the community, participating in daily routines and observing local practices related to land tenure. Data were collected through a combination of in-depth, semi-structured interviews and non-participant observation, allowing for the triangulation of perspectives and experiences.

Credibility was ensured by spending extended time in the field (prolonged engagement), triangulating data across interviews and observations, and conducting member checking—where participants reviewed and validated the researcher’s interpretations of their responses. Transferability was supported by providing thick, detailed descriptions of the study context, enabling readers to assess whether the findings may apply to similar rural settings.

Dependability was achieved by systematically documenting each step of the research process and maintaining an audit trail from data collection through analysis. Confirmability was enhanced through reflexive memo-writing, systematic coding, and transparency in analytical decisions, ensuring that findings were grounded in participants’ accounts rather than researcher bias (Lincoln & Guba, 1985).

3.7 Data Analysis

This approach entailed the steps of familiarisation with data, code generation, pattern recognition, theme development, and thematic categorisation.

In line with ethnographic tradition, data analysis in this study began during fieldwork and was closely intertwined with the process of data collection. As the researcher engaged with participants, attended community events, and observed daily practices, initial impressions and emerging patterns were documented through field notes and analytic memos. This iterative approach allowed for ongoing reflection and adjustment of interview questions based on insights gained in the field, ensuring that analysis was rooted in lived experience.

Thematic analysis, following Braun and Clarke (2006), was used to rigorously examine both interview transcripts and field notes. This process included repeated reading for familiarisation, manual coding to identify recurring concepts around land access, institutional barriers, cultural practices, and experiences of empowerment or disempowerment. Codes were then grouped into themes reflecting broader patterns, especially as they related to statutory law, gender power dynamics, and institutional challenges. The integration of Feminist Political Ecology and Feminist Legal Theory provided a theoretical lens for interpreting these themes, allowing for a nuanced understanding of how law, culture, and power intersect in women’s everyday experiences with land.

3.8 Ethical Considerations

The research conformed to ethical standards associated with qualitative research such as obtaining informed consent, maintaining confidentiality, using anonymous sources, and avoiding any form of harm. .

Ethical considerations were integral to every stage of this ethnographic research. Before entering the community, I sought approval in line with institutional research ethics policies and first met with local leaders to explain the research purpose and seek their permission, respecting customary protocols. During fieldwork, I spent extended time building trust with participants, often engaging informally before commencing interviews to ensure comfort and voluntary participation. Informed consent was obtained verbally or in writing, depending on literacy levels, with the study's aims and participants' rights explained in local language where necessary.

To maintain confidentiality, all interviews were conducted in private spaces chosen by participants, and no identifying information was recorded. Pseudonyms were assigned to each participant, and care was taken to store data securely. Throughout, I practiced cultural sensitivity by dressing appropriately, participating in community events when invited, and observing local customs especially when interacting with traditional leaders. I was attentive to power dynamics, ensuring participants did not feel coerced or exposed, and I regularly checked that they felt safe and comfortable sharing their experiences. These ethnographic practices ensured that participation was genuinely voluntary, respectful, and posed no harm to respondents.

CHAPTER FOUR

PRESENTATION OF DATA AND ANALYSIS OF FINDINGS

4.0 Introduction

This chapter presents and analyses findings from ethnographic fieldwork undertaken in Chibombo District. Consistent with the interpretivist philosophy and feminist ethnographic design detailed in Chapter Three, the data were generated through ethnographic accounts of women on customary land allocation processes, in-depth semi-structured interviews with women and key informants, and analysis of narratives surrounding land disputes. The analysis responds directly to the study's research objectives and is framed by Feminist Legal Theory and Feminist Political Ecology as established in Chapter Two.

4.1-Study Context

Chibombo District is centrally located in Zambia, approximately 95 kilometers north of Lusaka, and is predominantly rural. With a population of about 300,000, the district is ethnically diverse and largely dependent on small-scale agriculture. The local economy and social structures are shaped by a dual land tenure system: over 94% of land is administered under customary tenure by chiefs and headmen, while a small fraction falls under statutory tenure governed by the state.

Despite the existence of matrilineal descent among some ethnic groups, authority over land allocation and inheritance remains overwhelmingly patriarchal. Chiefs and headmen, nearly always male, control decisions about land, resulting in women's access being mediated and often insecure. Women, especially widows, single, or female-headed households, are particularly vulnerable to land dispossession and rarely hold land as primary owners.

Although Zambia's legal framework including the Lands Act of 1995 and the Gender Equity and Equality Act of 2015 promotes gender equality in land access, customary norms and practices in Chibombo often override statutory rights. Women's land rights remain largely secondary, derived through relationships with male relatives, and are frequently undermined by economic, institutional, and cultural barriers.

Chibombo's selection as the study site was strategic: its predominance of customary tenure, coexistence of matrilineal and patrilineal practices, and increasing competition for land make it an

ideal setting for examining the gap between policy and practice in women's land rights. The district's complexity and diversity also offer a rich context for ethnographic exploration of how women navigate, negotiate, and confront gendered barriers in both customary and statutory land tenure systems.

4.2 Access to the Field

Gaining access to the field in Chibombo District required a careful, respectful approach in line with institutional ethics and local customs. Before commencing fieldwork, the researcher obtained ethical clearance from the university and prepared introductory letters, which were presented first to the District Commissioner's office to announce the researcher's intentions and seek endorsement then later approached Chibombo District Council. The Council oversees development and governance matters, including those related to land. By meeting with council officials, the researcher formally introduced the study, secured their support, and clarified the research's academic and community aims.

Recognizing the critical role of traditional authority in rural Zambian communities, the researcher then initiated contact with traditional leadership in chief liteta and chitanda chiefdom. They serve as community gatekeepers. Through formal visits and the presentation of small tokens of appreciation, the purpose and goals of the research were explained, emphasizing respect for local customs and confidentiality for all participants. These meetings were essential, as no meaningful engagement could occur without the explicit approval and blessing of these leaders.

Once permission was granted, the chiefs and headmen provided introductions to village elders and community representatives. In some cases, the researcher was accompanied by a local intermediary or council representative known to the community, which facilitated trust and eased initial interactions. Several community meetings were attended and public gatherings for the purpose of familiarity with residents and to demonstrate the commitment to understanding daily life in Chibombo.

Participant recruitment was intentionally gradual and built on individual rapport. With the help of local leaders, council representatives, and recommendations from community members, the researcher identified women with relevant experiences in land access, inheritance, and disputes. Potential participants were approached individually, often in their homes or during community events, and were given detailed explanations of the research and their rights as participants. Key

informants, such as traditional leaders, local land administrators, and council officials, were similarly approached through formal requests and with respect to their roles in the land tenure process.

Throughout the fieldwork period, frequent communication with both council authorities and traditional gatekeepers was observed and updated them on progress, and observed appropriate cultural protocols including dress, greetings, and participation in local customs.

4.3 The Research Participants

The research participants comprised a purposively selected group of women and key informants, each offering unique perspectives on land access and tenure in Chibombo District. The women participants included widowed, single, and divorced individuals, aged between their late twenties and early sixties. Most have resided in Chibombo for the majority of their adult lives, with some being born and raised in the district, while others migrated due to marriage or family connections. They are primarily engaged in small-scale farming or market gardening, activities that make land access crucial for their livelihoods and household food security.

These women have diverse experiences with land: some have inherited fields from their natal families, others have attempted to secure land through marriage, and several have faced disputes or dispossession particularly after the death of a spouse. Their narratives reflect a deep familiarity with both customary and statutory land tenure systems, as they have interacted with chiefs, headmen, council officials, and government land officers. Many have also participated in community groups or savings associations, seeking collective strategies to strengthen their claims to land.

Key informants included traditional leaders (such as headmen) and local administrators, including council land officers and representatives involved in land governance. These individuals have extensive experience with land allocation, dispute mediation, and the implementation of government and customary policies. Their insights provided valuable context on institutional processes and the challenges women face in securing land rights in Chibombo.

4.4 Thematic Findings

4.4.1 Theme 1: Land as Security

Women in Chibombo consistently described land as a vital source of protection and stability a foundation that shields them from displacement and social vulnerability. As one participant powerfully stated:

“It means you have a place where you cannot be moved. You can have no money, but if you have land, you have dignity.”

An NGO informant reinforced this, noting that, *“For women, land is the place of crying, the place of burying and the place to which they belong. When a widow is kicked out from her land, it is not just an economic issue, but a spiritual one.”*

This perspective was echoed during a cooperative meeting in the rainy season, where women emphasized that land connects them to their humanity, not just to financial gain. Field notes recorded that woman associated land with permanence, dignity, and the ability to be a good mother.

These accounts demonstrate that land ownership is deeply tied to women’s sense of security, offering not just physical safety but also dignity and spiritual belonging. This finding aligns with prior research (Agarwal, 1994; Daley & Englert, 2010), which highlights land as essential for women’s long-term security and protection in rural African contexts

4.4.2 Theme 2: Land as Identity

Land in Chibombo is a profound marker of women’s identity and place within the community. During a women’s cooperative meeting, several participants described how land signifies more than ownership it connects them to family history and community legacy. For example, one participant recalled the meaning of inheriting her mother’s land:

“When I walk the boundaries of my mother’s field, I remember the stories she told me. This land is not just soil it is my family, my history, and my name.”

Field notes further recorded that women associated land with being recognized and respected in the village. Inheritance and stewardship of land affirm their roles as daughters, mothers, and lineage-bearers. This resonates with Feminist Political Ecology and the work of Doss et al. (2020), both of which show that land for rural women is intimately tied to identity, belonging, and intergenerational continuity

This sentiment was echoed in field notes, which recorded that women linked land to their standing as mothers and community members, describing how land ownership brings social recognition and respect. Land connects women to their ancestry and lineage, marking their place within the community. This finding aligns with Feminist Political Ecology (Rocheleau et al., 1996) and Doss et al. (2020), which both highlight that land is not just property, but a marker of personhood, belonging, and intergenerational identity for women in rural Africa.

4.4.3 Theme 3: Land as survival

For women in Chibombo, land is fundamental to survival, underpinning their capacity to feed their families and sustain daily life. As one participant explained:

This is my life. ”

“To have land is to feel secure. When I have land, I will grow food for my family. When my children build homes, they will have a place to build them. Without land, you just rent your life.”

Another participant explained:

“When I have land, I will grow food for my family. When my children build homes, they will have a place to build them. Without land, you just rent your life.”

This quote, echoed in several interviews and field notes, underscores how land forms the material basis of women’s livelihoods. The ability to cultivate crops and provide for children is central, making land a non-negotiable asset for daily existence. These findings reinforce the work of Agarwal (1994, 2021), who emphasizes that for rural women, land is the backbone of household survival and food security.

For women in Chibombo, land is fundamental to survival, underpinning their capacity to feed their families and sustain daily life. As one participant explained.

4.4.4. Theme 4: Institutional Capture and Bureaucratic Alienation

The English-Language, Urban-Centric Land Office

The Chibombo District and Land Office’s statutory land system excludes rural women from applying because of its physical and linguistic layout.

The Chibombo District Council Land Office bureaucracy was observed for three days and consists of a system that utilizes literacy, travel and use of financial capital to exclude women from

applying for land. All applications for land are to be completed in English. Fee structures are posted on a wall. There were no women applicants throughout all three days of observation.

Participants did not perceive this as a neutral, bureaucratic process, but precisely the opposite: "Neither education nor knowledge of the law means a person can cheat you." The NGO director confirms this structural gap: *"Very few women know about The Lands Act, applications are in English and the council is located in the town."*

This, as Njuki & Sanginga (2026) describe it, is Institutional Capture – through 'technical procedures' the Land Governance system preserves elite male's dominance. Analyzing the Land Office and its processes through a Feminist Legal Theory lens reveals it is not gender neutral: it is constructed to favour the male subject who can read, has the ability to move around freely and has an abundance of both time and financial capital to travel to the centre of town. For the local language speaking, non-literate women, who do not have child care, and no means of independent transportation, the Land Office is effectively considered to be outside of their territorial jurisdiction – where "the law ending at the tarmac".

4.4.5 Theme 5: Cash as Gatekeeper

Economic Exclusion and the Commodification of Statutory Access

This theme captures how the formalization process is filtered through gendered cash economies, including both official fees and informal payments, systematically privileging men.

Economic gender inequities have been structurally placed throughout each step of access to statutory services. The participants were candid about the significance of money, *"Money is certainly everything to people. Generally, if I pay for a token of appreciation, things will progress quickly"* and *"that's how men sell goats or charcoal work, we do not get money"*.

Accessing the statutory online application involves many costs: statutory application fees, transportation to the Council office, photocopying of documents, multiple return visits to the Council, and in every case a cost (normally incurred by the applicant) of sending "tokens of appreciation" directly to an official. The amount of liquid cash required to access all of this exceeds what most rural women can control in Chibombo. Rural women can produce income but tend to generate income from less cash and use these income streams to support the upkeep of their

households. On the other hand, men in a rural household control the sale of and receive income from high-value assets (goats and charcoal).

This is consistent with the findings of Holden et al. (2021) in Ethiopia where they concluded that if intra-household power dynamics are not taken into account, the process of formally providing people with title deeds will reinforce existing patterns of power inequality rather than disrupt them. From a Feminist Political Ecology perspective (Lawrence et al., 2025), these reflect structural barriers to statutory services. Women are unable to realize the benefits of their legal entitlements due to lack of access to the necessary material resources, education and networks to convert their legal rights into practical advantages, even when the law is formally gender-neutral.

The main conclusion is that the statutory system is not failing to deliver services to women; on the contrary, the statutory system has been designed to screen out economically disadvantaged rural women through the high costs of accessing statutory services both on a formal and informal basis.

4.4.6 Theme 6: Legal Invisibility

Legal Illiteracy and the Gendered Subject of Statutory Law

This theme synthesizes Themes 4 and 5 into a theoretical claim: the Zambian statutory land system produces legal invisibility for rural women by assuming a legal subject that does not exist in Chibombo.

Many women do not know that the Lands Act exists; this reflects exclusion that has been constructed rather than simply ignorance. The combination of English-language documents, urban-based administrative systems, monetary transactions, and male household resource control are systematic barriers that prevent rural women from becoming legible claimants in the statutory system. Women cannot be barred from the statute because they cannot enter it; they are filtered out before entering.

Feminist Legal Theory plays an important role in this instance because these processes are not gender-neutral administrative barriers, rather, they are constructed based on a normative legal subject; the male who is literate, mobile, English-speaking and has access to cash will have the upper hand in the statutory system and thus will be able to claim entitlements. Your data supports this with no women being identified as an applicant during 3 days at the District Land Office while there is a national policy for providing 50% of the land to women.

The legal invisibility of a woman is why the laws providing for gender equality and equity such as the Gender Equity and Equality Act (2015), CEDAW, and the Lands Act are not providing tenure security to women in Chibombo. Women cannot claim property if they cannot read, access or pay for those rights. Therefore, the thesis of your project is addressed by demonstrating how the power differential creates the implementation gap.

4.4.5 Theme 7: Patriarchal Customary Norms as Lived Law

During our March visit to a headman's chilolo court, we observed six land cases. All of these cases were brought forth by men, while women were seated around the outer edge of the room, and only spoke when asked to confirm information provided by their male relatives. For example, in a case where a widow attempted to lay claim to the field of her deceased husband, the headman's first response was to ask her brother-in-law to confirm the boundaries of the property. The brother-in-law, after answering, stated, "*She can use it; however, this property belongs to her children—the boy,*" and the hearing was concluded. Additionally, participant narratives shared many examples of culturally derived sayings that support these principles of exclusion. Observations of funerals confirmed that land was the source of great disputes about where to bury the deceased, as much as disputes about who inherited the land, indicating that land has a spiritual and ancestral significance.

This theme supports the claims of Feminist Political Ecology that women's relationship to land is rooted in social reproduction and community survival, rather than abstract property rights (Elmhirst, 2015; Rocheleau, 2018). It also extends Agarwal's (2021) argument that land strengthens women's bargaining power by revealing the affective dimensions of tenure. The implication is that dispossession constitutes social and emotional displacement, not merely economic loss. Therefore, statutory interventions focused only on titling miss the cultural governance of land, helping explain why formal equality mechanisms have limited traction in Chibombo.

The headman interviewed agrees with this logic: "*We're not going to take a woman's property away but, if she gets married to someone else, she doesn't put the property back to her family. She gives it to her new husband's family.*" The headman continues, "*Even progressive headmen say, 'But what happens if she does get married again and then takes land away from someone?'*" From a Feminist Legal Theory perspective, this shows the law is not neutral and has been created by society with male bias (Bainham, 2026). Dery (2024) supports the findings in Ghana; a woman

having matrilineal descent does not guarantee her control over anything when her male relatives still have authority over allocation. Likewise, Kalinda et al. (2022) show that even though the law says otherwise, Zambian chiefs still use their discretion to favour men as the heads of households.

The Chibombo data will add to this literature to show how everyday discourse can keep people from accessing property. One participant explained, "*We were taught this since we were girls, so we just don't ask,*" suggesting that people are socialized to comply with the system, not coerced by others. This means cultural norms exist as institutional structures to redefine legal rights into customary violations; Agarwal (2021) argues these competing systems of legal pluralism create more patriarchal laws than any one law can create.

4.4.7 Theme 8: Widowhood and the Conditionality of Women's Tenure

Widows are now using their own assets to support their kids and themselves rather than relying on the assets of their husbands. For example, three widow participants completed life history interview's all have demonstrated similar timelines. Specifically, marriage was a way; a baseline way of attaining land use through the husband. The subsequent death of the husband created a new platform in which negotiations occurred through the headman regarding access to the land from the in-laws. Participant 1 describes, "*when my husband passed away, my brother-in-law wanted to take the land...the headman called us to discuss this. They came to the conclusion that I could use the land until I die; but my son gets it after I die. There are usufruct rights provided with this land, but there are no rights to sell, dispose of or protect the land independently from my son.*" In contrast to Participant 1, Participant 3's paternal relatives, who were trying to take over her mother's land, said that "*as women we are not entitled to land,*" and were going to register the land under her brother's name.

The evidence from the NGO case files supports this pattern: "*Of the non-sons who are the owners of land and have died without written wills, eighty percent have lost their house*" (Key Informant 2); likewise, court observation data from Kabwe confirmed that of 12 estate thefts reported to the police by the widow or by someone else and brought before the court for adjudication, in all but one instance, the victim was a widow.

Women may have access to family land as a result of their relationship to their husband or father's family; however, they lose that access after the death of their husband or father. This supports the finding of Doss et al. (2015), which concluded that women's land security in the sub-Saharan

region is dependent on their marital status and familial ties. In Chibombo, a widow is not viewed as an independent owner of land but as a temporary caretaker of the land until a male heir can take over the property. The courts and the Law Society of Zambia could have been keyed into this relationship by using the Intestate Succession Act; however, Participant 5 notes, "*The courts are located all the way in town, it will cost us money to travel there and we are intimidated by the fact that they will not speak our native language.*"

The work of Sitwala and Tembo (2026) provides an overview of the micro-politics of women losing land rights: encroachment and relocation of boundary stones, the headman issuing "temporary use" of property to a male heir, and family meetings involving threats to intimidate the widow into giving up her land rights.

4.4.8 Theme 9: Economic and Institutional Exclusion from Statutory Systems

Field visits to the Chibombo District Council Land Office revealed a bureaucratic environment structured around literacy, mobility, and capital. All forms were in English, fees were posted on the wall, and no female applicants were observed during three days of observation. Participants described the process as prohibitive.

According to the findings, "*Money is everything. You have money for 'token of appreciation', things move quickly.*" The findings pointed out economic gender-based inequalities, "*men sell goats, or do charcoal work, money is not for us.*" Legal illiteracy makes the problem more complex. "*No education, do not know the law, thus people cheat you,*" The NGO Branch Manager confirmed this: "*Most women have no idea about the existence of the Lands Act; the forms are in English; the council is in town.*"

These findings illustrate what Njuki and Sanginga (2023) describe as "*institutional capture*," where institutions of land governance are reproducing the dominance of elite men over women. The statutory system does not exist; it is actively constructed in a way that filters out economically poor rural women via cost, distance, language, and bureaucracy. This backs up what Holden et al's (2020) study in Ethiopia discovered that without addressing power dynamics within households, titling reinforces inequitable power structures. Through Feminist Political Ecology lens, these barriers are structural access deficits where women lack the material resources, education, and networks to translate their legal entitlements into practical benefits. (Lawrence et al., 2025) On top

of this, Feminist Legal Theory suggests that these processes are not gender-neutral, as they are based on a male, literate, mobile person with surplus cash.

4.4.9 Theme 10: The Statutory–Customary Disconnect: “The Law Stops at the Tarmac”

The spatial and conceptual divides between customary law, or practice, and UK Statutory Law are revealed in the dissertations is described using the phrase that has been repeated by multiple participants, “*Law Stops at Tarmac*”. In a sensitization meeting held by an officer from the Ministry of Lands, an officer explained that the allocation for women is 50% of the land. After the meeting was completed, the headman told the officer, “*That is government land, where we follow our ways*”. The officer did not dispute the headman's statement and therefore tacitly accepted the jurisdictional boundaries set by each governing authority.

Women’s experiences appear to reflect this disconnection in that Participant 1 states, “*The radio says women can own land, but here if I say that, people will laugh at me for saying this*”. Participant 2 states that the “*Law says that we are to be equal; however, the village has stated that ‘woman is a visitor’.*” These statements demonstrate that women know of the existence of statutory (UK) law; however, UK Statutory Law does not carry the weight of authority within the community. These statements also indicate social sanctions of ridicule that serve as a means of governance to control women who invoke statutory rights. Participant 5 describes how there are both practical barriers and social barriers: “*The court is in Kabwe town; that alone requires money; I only speak ichibemba and I am afraid.*”

Argawal (2021) discusses competing normativities in this disconnect, as statutory and customs compete for authority, however customary norms have predominately governed rural land. Lund and Lemos (2025) noted in Tanzania how some village institutions selectively applied the statutory legal system to reinforce existing power hierarchies. Similarly, in Chibombo, patriarchal stability has consistently trumped any chance of achieving gender equality through statutory law, which suggests to Feminist Legal Theory, that without reforming the institutions that interpret/enforce the laws regarding formal legal equality, there cannot be any corresponding change in social relations. The laugh shared by Participant 1 was not an isolated incident rather it is a type of customary jurisprudence that essentially renders their statutory claims invalid. Thus, the policy-reality gap in Chapter One is not indicated by an implementation deficit but is a product of power whereby customary authorities maintain their own right to interpret land legislation.

4.4.10 Theme 11: Negotiated Agency and Emergent Change: “Pano Pano ”

Although structural constraints exist, women were able to exercise their agency by negotiating, forming alliances and changing social norms incrementally. For example, Participant 1 was able to appeal to the headman by using her maternal role as justification for her claim: *“I went to the headman; I told him, ‘This is where my children eat.’”* This type of approach worked because her expression of the maternal connection to the land could be considered within accepted gender role definitions rather than challenging patriarchal power directly. The NGO Director noted that there are changes in attitude if there is male participation, stating: *“When men hear other men say, ‘If my sister has land, my nieces will not suffer,’ male attitudes change.”*

The participants also described collective strategies for exercising agency, including women’s church groups meeting with the intent of pooling their chilimba savings to fund survey fees collectively. These findings support the work of Bwalya and Banda (2021) in Zambia, which found that rural women are using informal negotiations and community networks to assert their land rights. The participants were clear; however, that they only produce partial and contingent empowerment agency through these strategies. For example, the headman acknowledged, *“These days we are writing names of women, if the husband dies, but the son is always the owner.”* Thus, recognition of the women’s names only provides recognition but no rights to the land that the women are claiming and is not changing the fact that the men retain full control of the land.

The expression 'PanoPano' (slowly) used by participant 1 points to the fact that changes occur over time through relationships and generations, rather than immediately through legal processes. This supports Agarwal's (2021) position that women's bargaining power increases as they gradually improve their resources and social norms; it is not sufficient to rely solely on formal declarations of rights to create negotiating power. Regarding the second research question, it has been determined that women's experiences of empowerment are true experiences but also involve navigating the patriarchal system to gain access to use rights by playing traditional roles as mothers or custodians rather than exercising their right to self-determination as independent agents. In feminist political ecology, feminist political ecology reminds us that women's ability to act as agents is often limited by situations that restrict their ability to act freely and should not be romanticized.

4.5 Integrated Discussion and Theoretical Implications

This research highlights multiple factors that shape women's access to land in Chibombo, Zambia, including economic, institutional and cultural characteristics. For example, women are deemed temporary members of their natal lineage through mukazi ni wotandala culture, which denies them permanent land ownership rights. Women's access to land is also limited by the power of chiefs to distribute land under customary law, combined with impossibly high costs of 4,000 to 6,000 ZMW under statutory law, forcing men to serve as intermediaries for women. Furthermore, these factors work together according to intersectionality theory (Crenshaw 1989, Collins 2000), so that a widow is not simply disadvantaged as a woman, but as a poor, rural, Bemba-speaking widow who has neither financial independence nor legal literacy.

The findings reveal a bifurcated reality with regard to women's marginalization and empowerment. Marginalization is based on patterns of institutional and structural inequality, particularly at points of transition in the life cycle (i.e., when a woman becomes a widow). In contrast, women's empowerment is always partial and negotiated, as evidenced by women utilizing their maternal status, NGO training and chilimba groups to obtain use rights, but not statutory ownership rights to land. This supports the conclusions of Meinzen-Dick et al. (2019) that multiple dimensions of women's empowerment exist with respect to land tenure; therefore, women may possess access to land without a corresponding ability to exercise control or an assurance of security in land tenure.

According to theories, three issues arise. Feminist Legal Theory shows that statutory law in Chibombo uses customary norms to amplify male privilege through a re-evaluated understanding of statutory law. "Equality" is recognized locally as the ability to use land equally, being based entirely upon being a male. The Feminist Political Ecology explains that land access occurs through relationships and is produced through kinship and market/customary arrangements rather than through abstract rights. The commercial pressures surrounding land increase the risk to women because male relatives are now selling the land they have used for generations in trade for cash. The Access Theory shows that although women have theoretical access to property rights, there are no structural or relational means for women to benefit from the use of property. Therefore, rather than being a gap in implementation of the policies, the gap exists as a failure of power.

4.6 Chapter summary

This chapter has provided ethnographic data that supports the claim that women's experience with land in Chibombo District is one of safety, identity, and sustenance but also exhibits significant

discrimination toward women through patriarchal practices, vulnerability due to widowhood, economic constraints related to limitations on women's rights, and the intrinsic nature of being distanced from formal statutory regimes. While there is a legal framework in place that grants gender equity in access to property, the enforcement of customary law at the community level and the actual reliance of women on customary authorities leads to practical male domination of land. Although women are empowered by using negotiation and collective means to obtain land, their power continues to be mediated and tenuous.

CHAPTER FIVE

DISCUSSION OF FINDINGS

5.1 Introduction

Herein lays a discussion of the findings found in Chapter 4 per the study's two research objectives and its theoretical framework. Utilizing ethnographic research of women land users and key informants in Chibombo District, this discussion examines how institutional, legal, and cultural factors work together to shape women's access to land and how women experience both marginalization and negotiated empowerment within Zambia's dual tenure system. The analysis utilizes Feminist Legal Theory and Feminist Political Ecology, and is set within current discourse concerning legal pluralism, gendered tenure security, and the policy-reality gap in sub-Saharan Africa.

5.2 Institutional, Legal and Cultural Factors Affecting Women's Access to Land in Chibombo

The results of the study confirmed that the exclusion of women from secure landholding in Chibombo is not the result of one legal deficiency; rather it is the result of three interlocking systems that work together to reinforce male domination in land control. Therefore, the evidence supports the conclusion of the study that the reason for exclusion is structural and not due to implementation, i.e. there are three systems involved in exclusion from landholding in Zambia.

Culturally, the women's permanent land claim is invalidated under patriarchal norms considered as everyday customary law until a formal dispute arises, which are reflected in folkloric proverbs heard in the field such as mukazi ni wotandala ("a woman is just a visitor"), umwanakashi takwata ng'anda ("a woman does not own a home"), and the principle of "land is for sons," which are part of the institutionally mandated rules that determine who has the right to claim land. Women are commonly seen at the edge of the headman's chilolo court, only allowed to respond to requests for confirmation of what Male relatives said, and after providing any claim to land, will have their claims converted into custodial usage for Male relatives. This corresponds with the findings of Aguwau (2021) and Balas et al. (2020) regarding the competing normativity created by the use of legal pluralism in Africa, whereby customary authorities will reinterpret statutory legislation for

gender-based provisions to uphold patriarchal dominance over land resources; indeed in Chibombo, the customary law does not simply co-exist with statutory law; it supersedes it.

Women are systematically excluded by both customary and statutory land tenure systems in Zambia, though by different but interrelated means. Customary land is still allocated by male leaders, and the Central Province has no female traditional leaders that adjudicate land disputes. While the statutory land tenure system is supposed to be gender-neutral, the processes that are developed and executed through this system are based on the ability of literate, mobile men with cash.

During three days of field visits, the researchers observed no women applying for land through the statutory system at the Chibombo District Council Land Office. While in the office, all forms issued were in English and had application fees between 4,000–6,000 Kwacha (which is more than the annual income of most people who apply) and have been designed with men in mind; "✓I sell goats, or I do charcoal work, so I don't have money to apply for land."

The systemic capture of institutions that govern land corresponds with the reproduction of privileged masculine social structures, as supported by Njuki and Sanginga (2013) and is consistent with other recent research documenting the effects of structurally discriminatory access to land throughout sub-Saharan Africa (Lawrence et al., 2025).

What happened to me legally was a shift in the geographic and conceptual disconnect described by respondents in Chibombo with the comments about "the law ends on the runway." The women in Chibombo are aware of their legal rights, as stated in the law, for example, "the radio tells us that women can own land;" but if they try to use those rights, they will be ridiculed socially because "if I say that, they will laugh at me."

According to one of the Ministry of Lands' officers at a meeting to inform members of the community about the 50% allocation of land to women on the basis of government policy, the headman voiced no objection, stating "this is government land, and we shall do what we do." This validates the tenets of Feminist Legal Theory; namely, that formal legal equality does not produce substantive equality within those institutions that interpret and enforce the law when they continue to exist within a social relation of patriarchy (Bainham, 2012). The policy-impact gap described in Chapter One of this report is therefore not an implementation gap that can be closed by better

dissemination of the policy, but rather a power differential where custom-based authorities continue to hold the ultimate power/authority in determining what equality means in practice.

5.3 Women's experiences of empowerment and marginalisation within statutory and customary systems

The second objective was to investigate the experiences of women in Chibombo with regard to both marginalization and empowerment in terms of how they perceive themselves as empowered or disempowered have produced a bifurcated, conditional reality as outlined in the third conclusion of this report.

Marginalization occurs as a structural phenomenon and is experienced most intensely during the life transitions of women, particularly following the death of their husbands. All three of the widows who were involved in this study had been assigned conditional usufruct rights to use land belonging to their late husbands. However, these rights could only be exercised through the agency of their sons or brothers-in-law and therefore did not confer upon them any independent legal right to occupy, sell, bequeath, or protect the land. One of the widows reported being told by relatives of her deceased husband that "as women we cannot own land" and that they were attempting to register the land in her brother's name. The case files of the non-governmental organization supported this finding, noting that approximately 80% of widows whose husbands died without a will were subsequently evicted from their homes. This pattern has been corroborated by Doss et al. (2015) and Sitwala and Tembo (2016), who found that the ability of women in sub-Saharan Africa to secure land is largely dependent on their marital status and are linked to the male members of their families, and that widows do not generally hold land in their own right, but rather act as temporary custodians of the land on behalf of their male heirs.

The term „empowerment” can mean different things in different places. In this sense, empowerment is usually something that is real but is also transient, dependent upon relationships and requires more processes of negotiation than challenging traditional male institutions. Women have found ways to use their maternal identity when interacting with headmen through words of a maternal nature, “this is where I feed my children”. In addition, women have found ways to gather financially through the creation of chilimba savings groups to help pay for land valuations. Finally, some women’s church networks have worked to provide women with more solid social networks to help strengthen their land claims. The findings from Bwalya & Banda (2021) in rural Zambia

indicate women use informal means of negotiation and community networks to assert their land rights rather than formal approaches in the legal system. However, while women are asserting their land rights, this does not create legal rights or ownership/control of land. For example, as one of the headmen reported in the interview, “now we are writing women names on the house after husband dies, but the son will always be the legal owner.” Therefore, just having a recognised right does not necessarily confer ownership/control.

According to the participants, the local phrase *fimo fimo*, slowly, is a fitting way to describe the dual nature of empowerment in use. Unlike more independent models of empowerment such as asserting women's rights, which implies they are operating outside traditional gender roles and not tied to them, the majority of women's empowerment also occurs as they work within these same traditional roles as mothers and caretakers; this approach enables them to gradually empower themselves over time, often through relationships they build with others. The results of Agarwal (2021) and Meinzen-Dick et al. (2019) support this finding that women gradually gain greater power to negotiate from more resourceful and socially accepted means because these negotiations develop through productive interactions with others. This also supports the position of land tenure security being comprised of multiple dimensions of possession, use, management, and control, where women may have access but no control, or, they may have control but no assurance of security. Feminist Political Ecology provides credence to the assertion made above that women's agency should not be romanticized but rather considered within the structures into which women exist and act.

5.4 Theoretical implications

Three ways that the Chibombo findings provide theoretical contributions to the frameworks that guided this study: feminist legal theory supports and gives cultural context to the conclusion this study makes about statutory law in Zambia being not gender neutral, in practice (due to the document requirements, processes in the English language, and fee structures and the reliance on customary authorities for the original allocation of land). All of these items (systematically) favour the male literate, mobile subject with disposable income. This study states that equality, according to law in Zambia, is equal use rights through men, not equal ownership of land.

The feminist political ecology framework reveals that the process of accessing land in Chibombo is determined by the social relations between individuals and the socio-economic and ecological

conditions within which they exist, rather than by access to abstract legal rights. The rising value of land as a consequence of the commercialization of the peri-urban fringe of Lusaka increases the motivation for male relatives to forcibly remove their widowed relatives (who do not have money to purchase any), while the declining fertility of soils and climate variability increase the competition to access less fertile areas of land, creating an inequitable situation for female relatives who do not have the money and political connections to compete with their male relatives.

An intersectional analysis (based on a small sample size) demonstrates that the intersection of widowhood, poverty, remoteness, and limited legal literacy results in compounding effects of vulnerability. Thus, the experience of being a widow in Chibombo does not have a common impact, but is compounded by the fact that the majority of widowed women live in poverty and come from a rural area and do not speak Cibemba and have no source of independent income and have very limited legal literacy. This supports the argument made by Crenshaw (1989) and Collins (2000) regarding intersectionality, as it applies to a Zambian land tenure system.

Ultimately, FLT and FPE help explain the continuing gap between policy and reality regarding women's land tenure in Chibombo: women have formal rights, but there are no relational, material or institutional means available for them to access and benefit from these rights due to the fact that men control all means of access/benefiting from these rights. Access, as posited by Ribot and Peluso (2003), refers to having the ability to benefit and not simply to having a legal right to benefit from something, and the ability to access/benefit from something is still gendered.

5.5 Conclusions

The research discussed above demonstrates that the women's tenure insecurity problem in Chibombo is a result of the combination of: patriarchal customary norms as they operate as women's living laws; the economic and institutional barriers filtering women out of the statutory law system; and the customary-statutory disconnect where the local authorities maintain continuing power over determining "equality" for women. Experiences for women in Chibombo represent a structural marginalisation (the most acute being their experience as widows); and a real albeit tenuous experience of negotiated power through their maternal identities, through the formation of collective savings groups, and through the use of their community support networks. These findings support the claim that the difference (or gap) between Zambia's progressive land legislation and women's actual experiences of land tenure in Zambia represents a difference in

power rather than simply a difference in implementation of the statute; therefore, reforming land governance systems to achieve gender equality will require changes that work from the customary institutions as well as decanting legal services and building collective bargaining power for women, rather than only using top-down statutory changes.

CHAPTER SIX

CONCLUSIONS AND RECOMMENDATIONS

6.1 Introduction

The main objective of this research was to explore narratives about the barriers that hinder women's access to land ownership in Zambia. Guided by Feminist Legal Theory and Feminist Political Ecology, the study examined how institutional, legal, and cultural factors shape women's experiences of empowerment and marginalization within Zambia's dual tenure systems. The findings reveal that despite progressive legal frameworks, rural women in Chibombo continue to face significant obstacles such as patriarchal norms, insecure tenure, economic and institutional barriers, and limited recognition of their rights which collectively hinder their ability to own and control land. These conclusions are closely aligned with the research objective, providing insight into the complex, lived realities behind gendered land exclusion in Zambia.

6.2 Conclusions

First, women's access to land in Chibombo is produced through intersecting cultural, institutional, and economic systems that systematically privilege male household heads. Culturally, women are constructed as temporary members of both natal and marital lineages, expressed in the norm *mukazi ni wotandala*, a woman is a visitor, which delegitimizes permanent claims. Institutionally, customary leaders control allocation, and literacy requirements, English-language forms, and distance from land administration offices exclude low-income rural women. Economically, the cost of formalization, ZMW 4,000–6,000 for survey and registration as of 2025/2026, filters women out of statutory security. This three-system exclusion is consistent with bargaining and access frameworks in feminist political ecology (Agarwal, 1994, 2021; Doss et al., 2015), and with Zambia-specific findings that chiefs favour male household heads in allocation (Kalinda et al., 2022; Lawrence et al., 2025), and that rural certification in Zambia reduced conflict but failed to close gender disparities, with wealthier women benefiting disproportionately (Merten & Haller, 2023). It qualifies more optimistic titling accounts from Rwanda, where joint certification improved women's security only when accompanied by local-language enforcement (Burnet, 2026).

Second, the failure to provide women with equal access to land in Chibombo is not a policy implementation failure, but a power relationship. Statutory reforms, including the Gender Equity and Equality Act (2015), have not altered exclusionary customary practices, because customary authorities retain interpretive control over what gender equality means in practice. This is consistent with feminist legal theory accounts of law as socially embedded (Bainham, 2012; Aguwau, 2021; Balas et al., 2022), and with Lund and Lemos (2026), who show village institutions in Tanzania selectively applying statutory law to reinforce existing hierarchies. In Zambia the mechanism is codified: the Intestate Succession Act (1989) expressly excludes "land which at the time of death of the intestate had been acquired and was held under customary law", removing an estimated 94% of Chibombo land from statutory inheritance protection. This statutory carve-out, described as patrilineal in effect and in tension with Zambia's matrilineal inheritance systems (Spichiger & Kabala, 2014, as cited in Cele, 2021), confirms that the policy-reality disconnect is structural rather than administrative. Customary legal empowerment experiments in Namibia and Malawi show chiefs can internalize gender norms when given co-drafting roles, supporting a reform-with, rather than reform-against, customary authority approach.

Third, women in Chibombo experience both agency and marginalization, with marginalization becoming acute at widowhood. All widowed participants in this study held only conditional usufruct rights, reduced to custodians for male heirs, a pattern consistent with property-grabbing documented among Zambian widows (Sitwala & Tembo, 2016), and with regional evidence that women's land security in sub-Saharan Africa remains dependent on marital status and familial ties (Doss et al., 2015). The statutory limitation granting widows use rights but not ownership under the Intestate Succession Act (Spichiger & Kabala, 2014, as cited in Cele, 2021) explains the persistence of custodial tenure, a finding echoed in South Africa where women under traditional councils "are subleasing/tenants and lack land ownership" (Cele, 2021, p. v). Empowerment was evident through maternal identity bargaining, NGO legal literacy, and chilimba savings groups pooling survey fees, following Bwalya and Banda (2021) and Chisonga (2009). However, as Meinzen-Dick et al. (2019) caution, access without control remains insecure, consistent with the Chibombo headman's observation that "we write women's names, but the son is always the owner." Agency is therefore real but contingent, and easily rescinded at widowhood, divorce, or remarriage.

Fourth, tenure reform in Chibombo must reform gender relations, customary interpretation, and women's material conditions simultaneously. Substantive gender justice is generational and relational, requiring work through social norms and local institutions rather than top-down legislative reform alone. This aligns with Meinzen-Dick et al. (2011), who conclude that legal reforms rarely shift gendered access unless accompanied by social change, local institutional reform, and targeted empowerment, and with FAO and UN Women assessments that 164 states now have gender-equal land laws with uneven implementation globally. It qualifies mandatory joint-titling successes in Latin America, where Deere and León (2020) show women's asset ownership rose sharply within one titling cycle when joint registration was enforced with sanctions. In Zambia, the 94% customary land coverage and the Intestate Succession Act customary-land exemption mean mandatory titling cannot reach most Chibombo women without customary buy-in first, hence the sequencing proposed here: customary governance reform, subsidized joint/individual titling linked to chilimba groups, and community-led legal empowerment in Cibemba. Achieving gender-equitable land governance therefore requires incorporating traditional authorities, decentralizing legal services, and resourcing women's collective agency, not statutory change alone.

6.4 Contribution to Knowledge

Several critical gaps remain that hinder both theory and practice of understanding gender and land tenure issues within Zambia and sub-Saharan Africa. To start, there are few sustained ethnographic studies conducted within the districts observing land tenure customs in practice. The national land audits, including the recent Chibombo Pilot Land Audit which reported that an estimated 89% of householders indicated that women had equal access to land, only present statutorily-sanctioned allocations rather than locally enforced realities. The ways in which statutory equalities are reinterpreted locally is also substantially under-theorized, particularly for urbanizing or commercializing chiefdoms. Second, much of the existing Zambian research regarding gender and land, such as the works of Sitwala & Tembo (2016) and Kalinda et al. (2022), describes the gap between gender-based land policy and implementation as a result of poor implementation, lack of awareness, or capacity constraints – rather than as an expression of power.

Accounts of Feminist legal Theory, from the regional literature (Bainham, 2012; Aguwau, 2021; Balas e tal., 2022), assert that customary authorities determine how gender equality translates into

tangible reality, but this analysis has never been empirically validated through rigorously collected, Zambian field data, especially not within a matrilineal context. 2nd , Most studies treat rural Zambian women as a homogeneous category of marginal rights-holders and insufficient attention has been devoted to collective agencies for instance, on collective action strategies, negotiated tenure arrangements, and informal methods of obtaining rights to land through maternal identity bargaining , chilimba savings group, and NGO-sponsored legal literacy networks. Although the presence of agency has been acknowledged (Bwalya & Banda, 2021), the extent of its fragility in widowhood, divorce, or remarriage has never been empirically undertaken in a matrilineal tribal setting third, Prior to this, the majority of research examining legal pluralism within Zambia has been limited to the cases in which statutory law gave way to customary law at the point of formal dispute. What has been missing from this prior research is an examination of the barriers whereby customary norms have prevented women from bringing claims to the law at all.

This study addresses these gaps through sustained feminist ethnography in Liteta and Chitanda chiefdoms, Chibombo District, a matrilineal belt experiencing rapid commercialization and 6.4% annual population growth. Empirically, it provides the first sustained feminist account of gendered land tenure in peri-urban Chibombo, documenting a qualitative discrepancy between national audit figures and lived tenure: 100% of widowed participants held only conditional usufruct through male relatives; only 37.97% of parcels were formally titled; formalization costs were ZMW 4,000–6,000, excluding low-income women; and participants reported that "the law stops at the tarmac," with invoking statutory rights producing social ridicule rather than protection. These findings provide an intersectional, district-level baseline directly relevant to Zambia's Vision 2030 and SDG Target 5.a monitoring.

Theoretically, the research integrates Feminist Legal Theory and Feminist Political Ecology to demonstrate, through ethnographic evidence from Chibombo, that the disconnect between Zambia's gender-progressive land legislation and women's tenure insecurity is a problem of power rather than implementation. All institutions interpreting and enforcing the law are embedded within patriarchal relations at the local level, defining the legitimate claimant in male terms. This is not merely a customary practice issue. The Intestate Succession Act (1989) expressly excludes "land which at the time of death of the intestate had been acquired and was held under customary law" (s. 2(2)(a)), removing the majority of Chibombo land from statutory inheritance protection, a provision described as patrilineal in effect and in tension with Zambia's matrilineal systems

(Spichiger & Kabala, 2014, as cited in Cele, 2021). This reframes legal pluralism in Zambia from an implementation gap to a power differential, consistent with Lund and Lemos (2025), while customary legal empowerment experiments in Namibia and Malawi indicate that chiefs can internalize gender norms when given co-drafting roles, supporting reform with customary institutions rather than against them.

The study further documents both marginalization and negotiated agency, avoiding the homogenization of rural Zambian women, and traces the fragility of that agency across marital transitions, with widowhood as the breaking point. Empowerment was evident through maternal identity claims, pooling of survey fees through chilimba savings groups building on Chisonga (2009), and incremental generational change described locally as *cimo cimo*. At the same time, this agency did not confer statutory ownership or control, and was easily rescinded at widowhood, divorce, or remarriage, consistent with Doss et al. (2023) and with Meinzen-Dick et al. (2020), who caution that access without control remains insecure. By tracing how kinship authority, economic capacity, language, and mobility mediate the ability to benefit from land even where legal entitlement exists (Agarwal, 1994, 2021), the research provides an intersectional account of negotiated tenure under conditions of structural constraint.

Finally, the research contributes to customary law scholarship by demonstrating how proverbial norms – *mukazi ni wotandala*, women are visitors – operate as living customary jurisprudence that prevents women's permanent claims from reaching any formal dispute forum. Building on this analysis, it offers a constructivist-feminist framework for gender-responsive customary land administration in legally pluralistic settings: decentralized mobile land clinics with Cibemba-language assistance; joint and individual titling linked to women's chilimba savings groups; community-based legal aid desks and local court outreach circuits to enforce the Intestate Succession Act; and community-led legal literacy engaging men, boys, headmen, and traditional leaders. This sequencing – customary governance reform, subsidized titling, norm change – responds directly to evidence that legal reforms alone rarely shift gendered access unless accompanied by social change and local institutional reform (Meinzen-Dick et al., 2011), and qualifies mandatory joint-titling successes in Latin America (Deere & León, 2020), where enforcement was possible precisely because customary coverage was far lower than Zambia's 94%. By designing reform with customary institutions rather than around them, the framework provides

a replicable model for aligning statutory provisions with lived experience, contributing to Zambia's Vision 2030, the African Union Agenda 2063, and SDG Target 5.a.

6.5 Recommendations

6.5.1 Increasing women's access to and security of land

- i) Both the Ministry of Lands and Natural Resources and the Chibombo District Council should consider offering subsidies or waiving the fees for all land applications and registration.
- ii) Provision of mobile land clinics in all locations under local council to decentralize land administration services and allow for the provision of land applications
- iii) Village registers be used to confirm any land use be accepted by the government when converting a property to a leasehold.

6.5.2 Reforming customary land governance to recognize women's independent rights

- i) The MLNR, with support from the House of Chiefs, should develop a Gender-Responsive Customary Land Administration Programme, train all village headmen and chiefs in the Gender Equity and Equality Act, 2015, and systematically record women's and widows' use rights in village registers with dated, witnessed entries.
- ii) Create low-cost, simplified administrative procedures to enforce the Intestate Succession Act through local court outreach circuits, with proceedings in the local language, so widows can claim land without hiring legal representation.
- iii) Establish community-based legal aid desks in the District Council to support widows' claims.
- iv) Establish local gender and land monitoring committees, including traditional leaders, council staff, women's groups and NGOs, to monitor land distribution to women, report violations of statutory rights, and mediate disputes before dispossession occurs.

6.5.3 Strengthening women's collective agency and securing independent titling

- i) Implement a subsidized joint and individual titling programme explicitly linked to existing chilimba savings groups, to allow women to pool survey and registration fees.

- ii) Support and scale women's land cooperatives throughout Chibombo to serve as platforms for collective bargaining, mutual assistance in dispute resolution, and shared agricultural investment.
- iii) Issue customary occupancy certificates in women's names with clear protection that their rights to use and control land do not cease upon widowhood, divorce or remarriage.

6.5.4 Shifting discriminatory norms through community-led legal empowerment

- i) Implement legal literacy programmes in Cibemba, targeted at women, husbands, male relatives, headmen, and boys, delivered via radio, community drama, and church women's groups.
- ii) Provide regular gender sensitivity training for chiefs, headmen and local council land officers, highlighting the economic consequences of widow dispossession and the legal requirement for gender-equitable land administration

6.6 Limitations of the Study

While this research provides rich cultural details regarding women's experiences with insecure land tenure in Chibombo District, limitations are serious challenges that one faces in the field. For example, during data collection, a funeral or a disease outbreak and could prevent access to the participants.

First of all, the study is based on a relatively small sample of females with only eleven participants: nine women and two key informants. Two widows, two divorced woman, three single women, one representative from a women's/chilimba group, and one NGO/legal aid practitioner working on women's land rights. While the small sample size allowed for in-depth feminist ethnographic research as well as the opportunity for data saturation for this context, these results cannot be statistically generalized to Zambia, or to any other Central Province District that may have different ethnic groupings, market forces, or chief administrative processes. In addition, since Chibombo is located in a high-growth peri-urban corridor 95 kilometers north of Lusaka, the nature of land use within this district with regard to land pressure and commercialization will likely be inconsistent with that in remote rural customary areas.

Second, the study relied primarily on women's self-reported narratives of dispossession, negotiation and access, collected through semi-structured interviews and non-participant

observation over a limited fieldwork period. Participants to this research had to modulate their stories in the context of sensitive issues regarding land disputes within kinship networks and continuing authority from traditional chiefs and headmen (legal authorities) who provide access to the land (field), there may also be an element of social desirability bias given the social sanctions that may have been incurred if participants were to tell the truth regardless of how they might feel.

Interviews done in Cibemba were translated to English for analysis and although back-checking was done with the participants after the interviews were completed, there is a possibility that the meanings with the additional meanings and nuance, that are present in the original Cibemba language, will have been lost in the translation as they relate to customary definitions of ownership, custodianship and belonging.

The research methodology was designed primarily around women's lived experiences, consistent with Feminist Legal Theory and Feminist Political Ecology; therefore, the only engagement with male landholders, customary adjudicators and statutory officials was minimal (only two key informants were engaged). Due to this, the research cannot triangulate a perspective on allocation decisions, inheritance disputes and resolution processes based on the perspective of those who were exercising allocative authority. The use of a longer, multi-sited ethnography with sustained observation in all three of the aforementioned environments (chief's courts, land allocation committee meetings and District Council land offices) would have added depth of understanding to the manner in which statutory provisions are being interpreted and contested in practice.

The study's results are still valid despite the limitations outlined above; however, they provide specific parameters on the range of applicability. The results should be interpreted as context-dependent assessments of the production and negotiation mechanisms for gendered tenure insecurity in peri-urban Chibombo, and they will therefore provide a basis for future larger-scale, mixed-methods investigations throughout all customary land tenure systems in Zambia.

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